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No.

IN THE
SUPREME COURT OF THE UNITED STATES
OCTOBER TERM, 1994

APRIL LOVE,

Petitioner,

v.

ROBERT G. PEPERSACK, SR.,
MERRILL A. MESSICK, JR.,
ERNEST ELDON PLETCHER,
and ELMER HUNT TIPPETT, JR.,

Respondents.

PETITION FOR WRIT OF CERTIORARI TO
THE UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

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(i)

QUESTIONS PRESENTED

1. Does the Second Amendment to the United States Constitution guarantee an individual right to keep and bear arms, or a collective right of states to maintain militias?

2. Must a person have some affiliation with an organized state militia in order to have standing to assert a Second Amendment claim as part of an action brought pursuant to 42 U.S.C. Sec. 1983?

3. Is the Second Amendment applicable to the States via the Due Process Clause of the Fourteenth Amendment?

4. Did the Petitioner's Complaint state a cause of action under 42 U.S.C. Sec. 1983 where it is alleged, *inter alia*, that in disapproving her application to purchase a firearm the Respondents knew that they had no lawful basis for their conduct, and that they acted willfully and maliciously and with a reckless disregard of the Petitioner's Constitutional rights?

(ii)

PARTIES TO THE PROCEEDING

Petitioner: April Love

Respondents: Robert G. Peppersack, Sr.;
Merrill A. Messick, Jr.;
Ernest Eldon Fletcher; and
Elmer Hunt Tippet, Jr.

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and ELMER HUNT TIPPETT, JR.,

Respondents.

PETITION FOR WRIT OF CERTIORARI TO
THE UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

April Love respectfully petitions for a writ of certiorari to review the judgment of the United States Court of Appeals for the Fourth Circuit affirming the dismissal of her amended complaint filed in the United States District Court for the District of Maryland.

OPINIONS BELOW

The published opinion of the United States Court of Appeals for which review is sought is *Love v. Peppersack*, 47 F.3d 120 (4th Cir. 1995). The slip opinion in Case No. 94-1582 was dated February 3, 1995 [App. 25a-32a]. An appeal to that Court was taken by petitioner from an oral ruling rendered by the United States District Court for the District of Maryland, the Hon. Peter J. Messitte, Judge, on April 1, 1994 in the United States District Court for the District of Maryland in Civil Action No. 93-2609-PJM [App. 10a-24a]. The District Court's opinion is unreported.

JURISDICTION

Jurisdiction is conferred in this case pursuant to 28 U.S.C. Sec. 1254(1). The United States Court of Appeals for the Fourth Circuit affirmed the dismissal of the petitioner's amended complaint in a published opinion dated February 3, 1995. A Petition For Rehearing and Suggestion Of Rehearing In Banc was denied by order of the court on March 2, 1995 [App. 33a].

RELEVANT STATUTES AND CONSTITUTIONAL PROVISIONS

Set forth in App. 1a-9a are U.S. Const., Amendment 2, U.S. Const., Amendment 14, Section 1, 42 U.S.C. Sec. 1983, Fed. Civ. Procedure 12(b)(6), Md. Ann. Code art. 27, Sec. 442, and Md. Ann Code art. 27, Sec. 445.

STATEMENT OF THE CASE

Jurisdiction is conferred in this case pursuant to 28 U.S.C. Sec. 1254(1).

A. The Parties and The Underlying Action.

Petitioner's 42 U.S.C. Sec. 1983 complaint arises out of the unlawful interference by the Maryland State Police with her attempt to purchase a handgun. Respondents include three State Troopers and the Superintendent of State Police, all of whom are alleged to have acted in their official capacities under color of state law [App. 35a-36a]. They are being sued, however, only in their individual capacities [App. 36a].

Petitioner sought to purchase a handgun from a retailer in Prince George's County, Maryland. She filled out an "Application To Purchase A Firearm" (Maryland State Police Form #77R) which was forwarded to the licensing division of the Maryland State Police¹ [App. 36a]. Petitioner properly completed her application and all information given by her was true and correct [App. 37a]. It is undisputed that petitioner was not legally disqualified from purchasing a handgun. However, in violation of state law, respondents disapproved her application solely

¹ Md. Ann. Code, art. 27, Sec. 442 requires that any persons seeking to purchase a handgun from a dealer must first submit an application to the Superintendent of State Police. By signing the application a prospective purchaser certifies that he or she is not disqualified from purchasing or possessing a handgun by any factors set forth in art. 27, Sec. 442(f). The Superintendent is required to conduct an investigation into the application. Md. Ann. Code, art. 27, Sec. 442(g). For 7 days from the date the application is submitted a transfer of the handgun to the prospective purchaser may not take place. If, after seven days, the dealer does not receive a notice of disapproval from the Superintendent a transfer may take place.

The Superintendent may send a notice of disapproval *only* "[i]f it be thereupon determined that any false information or statement has been supplied or made by the applicant, or that the application has not been properly completed, . . ." *Id.*

on the basis of several prior arrests² without determining the ultimate disposition of those arrests [App. 38a-40a]. Respondents, without any lawful basis, sent a notice to the seller of the handgun that a transfer to petitioner could not be completed [App. 40a]. Respondents maintained a long standing policy of disapproving applications solely on the basis of prior arrests despite their knowledge that Md. Ann. Code art. 27, Sec. 442 permitted them to send a notice of disapproval to the seller of a handgun only when they determined that an applicant provided false information or that the application had not been properly completed [App. 41a-42a, 44a].

Petitioner alleges that as a result of respondents' unlawful conduct she was denied the ability to purchase a handgun and was compelled to obtain the services of legal counsel to represent her in an appeals process [App. 45a]. The appeals process culminated in an order entered in her favor by the Circuit Court for Prince George's County, Maryland whereby the respondent Tippet was ordered to "forthwith approve [petitioner's] Application To Purchase A Firearm" [App. 45a]. The state Court held that the disapproval of petitioner's application had been "arbitrary and capricious" [App. 17a].

All the individual respondents are alleged to have acted willfully and maliciously and with a reckless disregard of the constitutional rights of petitioner [App. 45a]. Petitioner alleges that respondents' conduct was deliberate and made with knowledge that there was no

²Petitioner worked as an exotic dancer. Of her three arrests in Florida, two were for participating in an obscene show and one was for indecent exposure. All three were misdemeanors. Only one resulted in a conviction when she pleaded guilty to participating in an obscene show and paid a fine. Petitioner's arrest in Illinois was for two counts of battery and one count of resisting arrest. This did not result in a conviction.

lawful basis for disapproval of her application [App. 38a-41a, 45a]. Petitioner alleges a deprivation of rights guaranteed to her by the Second and Fourteenth Amendments to the United States Constitution, namely, the right to keep and bear arms, freedom to contract and due process of law [App. 46a].

B. Respondents' Motion To Dismiss.

Respondents filed a motion to dismiss pursuant to Fed. R. Civ. P. 12(b)(6) for failure to state a cause of action. This motion was granted by the District Court after a hearing on April 1, 1994 [App. 10a].

C. The Appeal.

Petitioner noted an appeal to the United States Court of Appeals for the Fourth Circuit. The case was captioned *Love v. Pepersack*, No. 94-1582. In a published opinion dated February 3, 1995, *Love v. Pepersack*, 47 F.3d 120 (4th Cir. 1995), the Court of Appeals affirmed the dismissal of petitioner's amended complaint by the District Court [App. 31a].

The Court of Appeals held that the Second Amendment "preserves a collective, rather than individual right" [App. 31a]. This holding runs contrary to several opinions of this Court. See *Scott v. Sanford*, 60 U.S. (19 How.) 393, 15 L.Ed. 691 (1857); *United States v. Cruikshank*, 92 U.S. 542, 23 L.Ed. 588 (1876); *Presser v. Illinois*, 116 U.S. 252, 6 S.Ct. 580, 29 L.Ed. 615 (1886); *Miller v. Texas*, 153 U.S. 535, 14 S.Ct. 874, 38 L.Ed. 812 (1894); *United States v. Miller*, 307 U.S. 174, 59 S.Ct. 816, 83 L.Ed. 1206 (1939). In each of these cases in which this Court discussed, or touched upon the Second Amendment, it never conditioned the right to keep and bear

arms upon affiliation with or service in an organized militia. Even today, this court still refers to the Second Amendment in the context of *individual* rights, such as the right of freedom of speech and freedom from unreasonable searches and seizures. See *United States v. Verdugo-Urquidez*, 494 U.S. 259, 265, 110 S.Ct. 1056, 108 L.Ed.2d 222 (1990); *Planned Parenthood v. Casey*, ___ U.S. ___, 112 S.Ct. 2791, 120 L.Ed.2d 674 (1992).

The opinion of the Court of Appeals is also in conflict with the opinion of the United States Court of Appeals for the Ninth Circuit in *Fresno Rifle And Pistol Club v. Van De Camp*, 965 F.2d 723, 731 (9th Cir. 1992) affirming the holding of a district court that the Second Amendment guarantees an individual right (although declining to hold it applicable to the States via the Fourteenth Amendment).

The Court of Appeals also relied upon *United States v. Cruikshank*, 92 U.S. 542, 23 L.Ed. 588 (1876) and *Presser v. Illinois*, 116 U.S. 252, 6 S.Ct. 580, 29 L.Ed. 615 (1886) as sole authority for the proposition that the Second Amendment is inapplicable to the states [App. 30a]. In doing so, the Court of Appeals ignored almost a century of case law in which this Court has repudiated *Cruikshank's* holding that none of the Bill of Rights are applicable to the states.

The Court of Appeals stated as fact things that are not apparent from the record in order to excuse respondents' unlawful disapproval of petitioner's application to purchase a firearm. In particular, the Court stated that "[the licensing division] was strapped for time" [App. 26a]. The Court also stated as fact that "[respondents] were forced by extreme time constraints to streamline investigations" [App. 29a]. Neither of these facts upon which the Court so heavily relied are apparent from the record.

That the respondents were "strapped for time" was never even suggested by the respondents in their brief.

The Court of Appeals also treated this case as if it were one alleging unintentional conduct, although the amended complaint clearly alleges that respondents all acted willfully and maliciously. The Court held that a violation of substantive due process occurs:

only where the government's actions in depriving a person of life, liberty, or property are so unjust that no amount of fair procedure can rectify them [App. 29a].

This is an appropriate standard in a case involving *unintentional* conduct. *Daniels v. Williams*, 474 U.S. 327, 331, 106 S.Ct. 662, 665, 88 L.Ed. 2d 662 (1986). However, petitioner's amended complaint clearly alleges that respondents' conduct was deliberate and respondents acted with knowledge that there was no lawful basis for disapproval of petitioner's application [App. 38a, 41a, 45a].

The Court of Appeals ignored an established standard of review in evaluating a Rule 12(b)(6) motion. That is whether the complaint, accepting the allegations as true, allows a recovery. *Waterford Citizens Ass'n. v. Reilly*, 970 F.2d 1287, 1290 (4th Cir. 1992).

D. The Petition For Rehearing.

In her petition For Rehearing And Suggestion Of Rehearing In Banc all of the points raised immediately above were brought to the attention of the Court of Appeals. The petition was denied on March 2, 1995 [App. 33a].

REASONS FOR GRANTING THE PETITION

I.

IN HOLDING THAT THE SECOND AMENDMENT "PRESERVES A COLLECTIVE, RATHER THAN AN INDIVIDUAL RIGHT" THE COURT OF APPEALS DECIDED A FEDERAL QUESTION IN A WAY THAT CONFLICTS WITH APPLICABLE DECISIONS OF THIS COURT.

The Court of Appeals reaffirmed its earlier decision in *United States v. Johnson*, 497 F.2d 548 (4th Cir. 1974) that the "Second Amendment preserves a collective, rather than an individual right" [App. 31a]. It also suggested that petitioner, in order to prevail on any Second Amendment claim, would have to identify "how her possession of a handgun will preserve or insure the effectiveness of the militia" [App. 31a]. In holding that the Second Amendment preserves only a collective right (and suggesting that affiliation with a militia is required to assert a Second Amendment claim) the Court of Appeals decided a federal question in a way that conflicts with applicable decisions of this Court. On those occasions where it has discussed the right to keep and bear arms, this Court has always treated it as an individual right. Furthermore, this Court has *never* conditioned the right to keep and bear arms upon affiliation with an organized state militia.

In *Scott v. Sanford*, 60 U.S. (19 How.) 393, 15 L.Ed. 691 (1857) this Court addressed the question of whether persons of African descent could be citizens. It held that they could not in an opinion written by Chief Justice Taney, a Southerner from Maryland (where slavery was both legal and widely practiced). In 1857, Southerners were not keen on the idea of freeing the slaves, much less bestowing upon them the rights of citizens. The concerns of his fellow Southerners were not lost upon Chief

Justice Taney, who wrote that if blacks were recognized as citizens in any State of the Union, they would have the right to travel freely, engage in free speech, hold public meetings on political issues, and "keep and carry arms wherever they went." 60 U.S. at 416-17. If the Second Amendment guaranteed only the collective right of states to maintain militias, there would have been no reason for Taney to fear that black citizens could "keep and carry arms" since citizenship does not automatically entail service in an organized state militia. What concerned Chief Justice Taney was the rights blacks would enjoy as *citizens*. This Court's opinion in *Scott v. Sanford* also listed the right to keep and bear arms with other rights which the Court has held to be of an individual nature, such as freedom of religion, free speech, freedom of the press, peaceable assembly, trial by jury, and the right against self-incrimination. 60 U.S. at 450.

In *United States v. Cruikshank*, 92 U.S. 542, 23 L.Ed. 588 (1876) this Court effectively repealed the Due Process Clause of the Fourteenth Amendment by holding that the Second Amendment, like the rest of the Bill of Rights, only operated as a restraint upon the federal government. In discussing the right to "bear arms for a lawful purpose" this Court stated that "the people" should look to localities (not the National Government) for protection against "their fellow citizens" of rights recognized by the Second Amendment. 92 U.S. at 553. *Cruikshank* affirmed an order arresting judgments of conviction for conspiracy to deprive freed blacks in Louisiana of their civil rights. The fact that the black citizens who were victimized were not affiliated with an organized state militia had no bearing on the case. This Court in *Cruikshank* also used the phrase "the people" in the same context as "their fellow citizens." 92 U.S. at 553. It

obviously viewed "the people" referred to in the Second Amendment as meaning individuals. States, unlike individuals, do not have "fellow citizens."

In *Presser v. Illinois*, 116 U.S. 252, 6 S.Ct. 580, 29 L.Ed. 615 (1886) this Court upheld the conviction of a man charged with parading a body of armed men through Chicago without a license. Illinois law prohibited bodies of men to associate together as military organizations or to drill or parade in cities and towns unless authorized by law. Presser challenged this law as violating the Second Amendment. The Court held that these provisions did not infringe the right of the people to keep and bear arms. Citing *Cruikshank*, *Presser* also held that the Second Amendment is a limitation only upon Congress and the federal government. *Presser* did, however, hold that all citizens capable of bearing arms constitute the reserve military force or reserve militia of the United States and of the States, and that even without the Second Amendment states may not prohibit people from keeping and bearing arms "so as to deprive the United States of their rightful resource for maintaining public security." 116 U.S. at 265, 6 S.Ct. at 584. *Presser* thus drew a clear distinction between "the people" and "States." As in *Scott v. Sanford* and *Cruikshank*, this Court in *Presser* never conditioned the right to keep and bear arms upon affiliation with an organized state militia. If the Second Amendment guaranteed only a collective right, this Court could easily have disposed of Presser's Second Amendment claim by holding that he lacked standing to assert it. Instead, this Court addressed Presser's Second Amendment claim *on its merits*.

In *Miller v. Texas*, 135 U.S. 535, 14 S.Ct. 874, 38 L.Ed. 812 (1894) this Court declined to rule on the appellant's Second Amendment claim due to his failure

to raise it in a timely fashion, stating, "[i]f the Fourteenth Amendment limited the power of the States as to such rights, as pertaining to citizens of the United States, we think it was fatal to this claim that it was not set up in the trial court." 153 U.S. at 538. Miller had been convicted of murder and on appeal argued that Texas law forbidding the carrying of weapons violated the Second Amendment. Once again, if the Second Amendment guaranteed only a collective right, such a claim could have been easily disposed of due to Miller's lack of standing. However, Miller's claim was not ruled upon because he, as an individual, lacked standing to assert it. This Court held that he had failed to assert it in a timely fashion.

United States v. Miller, 307 U.S. 174, 59 S.Ct. 816, 83 L.Ed. 1206 (1939) involved the indictment of Jack Miller and a cohort for unlawfully transporting a short-barrelled shotgun in violation of the National Firearms Act of 1934. The federal district court sustained Miller's demurrer to the indictment, holding that the section of the act under which he had been indicted violated the Second Amendment. The United States appealed. Miller absconded. Only the Solicitor General for the United States filed a brief or appeared to argue the case. What this Court was concerned with was whether the shotgun possessed by Miller had "some reasonable relationship to the preservation or efficiency of a well-regulated militia, . . ." 307 U.S. at 178, 59 S.Ct. at 818. This Court refused to take judicial notice that a short-barrelled shotgun "is any part of ordinary military equipment or that its use could contribute to the common defense", 307 U.S. at 178, 59 S.Ct. at 818, and the case was remanded to the district court for further proceedings. If the Second Amendment guaranteed only a collective

right, this Court could have simply held that Jack Miller, as an individual, lacked standing to assert a right to keep and bear arms. However, the fact that Miller was not affiliated with an organized state militia had no bearing on the case. *Miller* never even suggested that the possessor of a firearm must be a member of a militia, and the individual nature of the right to keep and bear arms went unquestioned.

United States v. Verdugo-Urquidez, 494 U.S. 259, 110 S.Ct. 1056, 108 L.Ed.2d 222 (1990) involved the search of a residence in Mexico by agents of the United States Drug Enforcement Agency. The occupant of the residence was a Mexican citizen who later sought to suppress evidence that had been obtained during the search. This Court held that the Fourth Amendment did not apply to a search by American police of the Mexican residence of a Mexican citizen and resident who had no voluntary attachments to the United States. Although this case involved a claim under the Fourth Amendment's prohibition against unreasonable searches and seizures, the opinion by Chief Justice Rehnquist makes it clear that the phrase "the people", as used in the Bill of Rights, means individuals:

"The people" seems to have been a term of art employed in select parts of the Constitution. . . . The Second Amendment protects "the right of the people to keep and bear Arms," and the Ninth and Tenth Amendments provide that certain rights and powers are retained by and reserved to "the people." See also U.S. const., Amdt. 1, ("Congress shall make no law . . . abridging . . . the right of the people peaceably to assemble") While this textual exegesis is by no means conclusive, it suggests that "the people" protected by the Fourth Amendment, and by the First and Second Amendments,

and to whom rights and powers are reserved in the Ninth and Tenth Amendments, refers to a class of persons who are part of a national community or who have otherwise developed sufficient connection with this country to be considered part of that community. 494 U.S. at 265, 110 S.Ct. at 1057 (emp. added)

In his dissenting opinion in *Verdugo-Urquidez*, Justice Brennan noted that, "the term 'the people' is better understood as a *rhetorical counterpoint* to 'the government,' such that rights that were reserved to 'the people' were to protect all those subject to 'the government.' " 494 U.S. at 287, 110 S.Ct. at 1072 (emp. added)

In *Planned Parenthood v. Casey*, ___ U.S. ___, 112 S.Ct. 2791, 120 L.Ed.2d 674, (1992), this Court considered the constitutionality of provisions in a Pennsylvania abortion statute requiring the informed consent of the patient, a 24-hour waiting period, parental consent, spousal notification, and reporting and record-keeping. The plaintiffs claimed that such provisions constituted a deprivation liberty in violation of the Due Process Clause of the Fourteenth Amendment. *Planned Parenthood* held that the substantive liberties protected by the Fourteenth Amendment against interference by the States was not limited to those rights already guaranteed against federal interference by the first eight amendments to the Constitution. In doing so, this Court listed the right to keep and bear arms in the same context as other rights which it has held to be of an individual nature:

Neither the Bill of Rights nor the specific practices of the States at the time of the adoption of the Fourteenth Amendment marks the outer limits of the substantive sphere of liberty which the Fourteenth Amendment protects. See U.S. Const.,

Amend. 9. As the second Justice Harlan recognized:

"[T]he full scope of the liberty guaranteed by the Due Process Clause 'cannot be found in or limited by the precise terms of the specific guarantees elsewhere provided in the Constitution. This 'liberty' is not a series of isolated points pricked out in terms of the taking of property; *the freedom of speech, press, and religion; the right to keep and bear arms; the freedom from unreasonable searches and seizures*; and so on. It is a rational continuum which, broadly speaking, includes a freedom from all substantial arbitrary impositions and purposeless restraints, . . . and which also recognizes, what a reasonable and sensitive judgment must, that certain interests require particularly careful scrutiny of the state needs asserted to justify their abridgement." *Poe v. Ullman, supra*, 367 U.S. at 543, 81 S.Ct., at 1777 (Harlan, J., dissenting from dismissal on jurisdictional grounds.) 112 S.Ct. at 2805 (emp. added)

That this Court would even mention the right to keep and bear arms in a discussion of the rights protected by the Due Process Clause of the Fourteenth Amendment demonstrates that it considers the Second Amendment to guarantee an individual right. The touchstone of due process is protection *of the individual* against arbitrary action of government. *Dent v. West Virginia*, 129 U.S. 114, 123, 9 S.Ct. 231, 233, 32 L.Ed. 623 (1889); *Wolff v. McDonnell*, 418 U.S. 539, 558, 94 S.Ct. 2963, 41 L.Ed.2d 935, 2976 (1974).

The First and Fourth Amendments guarantee individual, as opposed to collective, rights. See *Gitlow v. New York*, 268 U.S. 652, 45 S.Ct. 625, 69 L.Ed. 1138 (1925)

(First Amendment guarantee of freedom of speech applicable to States); *Mapp v. Ohio*, 367 U.S. 643, 81 S.Ct. 1684, 46 L.Ed.2d 1081 (1961) (barred use of evidence seized in violation of Fourth Amendment). The Court's opinions in *Verdugo-Urquidez* and *Planned Parenthood* demonstrate that if "the people" whose rights are guaranteed by the First, Fourth, Ninth, and Tenth Amendments are individual, "the people" whose rights are guaranteed by the Second Amendment must also be individuals.

All of the above cases were cited by petitioner below. The Court of Appeals, however, dismissed the petitioner's authorities as being only "law review articles". [App. 30a] One of those law review articles was *The Bill of Rights as a Constitution*, 100 YALE L.J. 1131, 1166 (1991), in which Prof. Akil Reed Amar of Yale Law School wrote:

The states' rights reading [of the Second Amendment] puts great weight on the word "militia," but this word appears only in the Amendment's subordinate clause. The ultimate right to keep and bear arms belongs to "the people," not the "states." As the language of the Tenth Amendment shows, these two are of course not identical and when the Constitution means "states," it says so. Thus, as noted above, "the people" at the core of the Second Amendment are the same "people" at the heart of the Preamble and the First Amendment, namely Citizens.

Another law review article cited by petitioner below was *The Second Amendment and The Personal Right to Arms*, 43 DUKE L.J. 1236, 1243-44 (1994) in which Prof. William Van Alstyne writes:

[The Second Amendment] looks to an ultimate reliance on the common citizen who has a right to

keep and bear arms rather than only to some standing army, or only to some other politically separated, defined, and detached armed cadre, as an essential source of security of a free state. In relating these propositions within one amendment, moreover, it does not disparage, much less does it subordinate "the right of the people to keep and bear arms." To the contrary, it expressly *embraces* that right and indeed it erects the very scaffolding of a free state upon *that* guarantee. *It derives its definition of a well-regulated Militia in just this way for a "free State:"* The Militia to be well regulated is a Militia to be drawn from just such people (i.e. people with a right to keep and bear arms) rather than from some other source (i.e. from people without rights to keep and bear arms) (emp. in original)

During the Constitutional Convention, language qualifying the right to keep and bear arms by inserting the phrase "for the common defense" next to the words "bear arms" was rejected. This underscores the drafters' refusal to limit the right to military purposes. Dowd, *Federal And State Constitutional Guarantees To Arms*, 15 U. DAYTON L. REV. 59, 66 (1989).

II.

THE OPINION OF THE COURT OF APPEALS IS IN CONFLICT WITH THAT OF ANOTHER UNITED STATES COURT OF APPEALS ON THE SAME MATTER.

The opinion of the Court of Appeals is in conflict with the opinion of the United States Court of Appeals for the Ninth Circuit in *Fresno Rifle And Pistol Club v. Van De Camp*, 965 F.2d 723 (9th Cir. 1992) on the question of whether the Second Amendment guarantees an individual

right. In *Fresno*, the ninth Circuit Court of Appeals affirmed the holding of a district court that the Second Amendment guarantees an individual right. *Id.* at 731. A conflict therefore exists between the Circuit Courts as to the nature of the right guaranteed by the Second Amendment.

III.

IN HOLDING THAT "THE SECOND AMENDMENT DOES NOT APPLY TO THE STATES" THE COURT OF APPEALS DECIDED A FEDERAL QUESTION IN A WAY THAT CONFLICTS WITH APPLICABLE DECISIONS OF THIS COURT.

Citing only *Presser v. Illinois*, 116 U.S. 252, 6 S.Ct. 580, 29 L.Ed. 614 (1886) and *United States v. Cruikshank*, 92 U.S. 542, 23 L.Ed. 588 (1876) the Court of Appeals held that "[t]he Second Amendment does not apply to the states" [App. 30a].

United States v. Cruikshank held that the Second Amendment was intended only as a bar to action by the federal government. 92 U.S. at 553. *Cruikshank* was cited for this proposition ten years later in *Presser v. Illinois*, 116 U.S. at 265, 6 S.Ct. at 584. Actually, *Cruikshank* held that the *none* of the Bill of Rights acted as a restraint upon State action. As the Court stated succinctly:

The First Amendment to the Constitution prohibits Congress from abridging "the right of the people to assemble and to petition the Government for a redress of grievances." This, *like the other amendments proposed and adopted at the same time*, was not intended to limit the powers of the State Government in respect to their own citizens, but to operate upon the National Government alone. 92 U.S. at 553 (emp. added)

This Court has long since abandoned such a restricted application of the Bill of Rights in a series of cases beginning in 1897. Utilizing what has come to be known as the "incorporation doctrine" this Court has held that various individual rights guaranteed by amendments to the U.S. Constitution may not be infringed upon by the states. *See, e.g., Chicago B. & Q. R. Co. v. Chicago*, 166 U.S. 226, 17 S.Ct. 581, 41 L.Ed. 979 (1897) (compensation for taking of property); *Gitlow v. New York*, 268 U.S. 652, 45 S.Ct. 625, 69 L.Ed. 1138 (1925) (freedom of speech); *Mapp v. Ohio*, 367 U.S. 643, 81 S.Ct. 1684, 46 L.Ed.2d 1081 (1961) (barred use of evidence seized in violation of Fourth Amendment); *Robinson v. California*, 370 U.S. 660, 82 S.Ct. 1417, 8 L.Ed.2d 758 (1962) (prohibition against cruel and unusual punishment); *Gideon v. Wainwright*, 372 U.S. 335, 83 S.Ct. 792, 9 L.Ed.2d 799 (1963) (right to counsel); *Malloy v. Hogan*, 378 U.S. 1, 84 S.Ct. 1489, 12 L.Ed.2d 653 (1964) (self-incrimination); *Klopfer v. North Carolina*, 386 U.S. 213, 87 S.Ct. 988, 18 L.Ed.2d 1 (1967) (speedy trial); *Duncan v. Louisiana*, 391 U.S. 145, 88 S.Ct. 1444, 20 L.Ed.2d 491 (1968) (jury trial); *Benton v. Maryland*, 395 U.S. 784, 89 S.Ct. 2056, 23 L.Ed.2d 707 (1969) (double jeopardy).

In *The Second Amendment and The Personal Right to Arms*, 43 DUKE L.J. 1236, 1239, n. 10 (1994) Prof. William Van Alstyne writes:

[T]here are a few nineteenth century decisions denying any relevance of the Second Amendment to the States; but these decisions (they have never been revisited by the Supreme Court) merely mimicked others of the same era in holding that *none* of the rights or freedoms enumerated in the Bill of Rights were made applicable by the Fourteenth Amendment to the states. *See, e.g., Presser v. Illinois*, 116

U.S. 252 (1886); *United States v. Cruikshank*, 92 U.S. 542, 553 (1876). The shaky foundation of these cases ("shaky" because the effect was to eviscerate the Fourteenth Amendment itself) has long since been recognized — and long since repudiated by the Court in general.

While *Cruikshank* (and its progeny, *Presser*) did hold that the Second Amendment does not apply to the states they did so only in the context of holding that *none* of the Bill of Rights applied to the states. To the extent that the principle enunciated in *Cruikshank* has since been repudiated, the Court of Appeal's reliance on that case as precedent conflicts with this Court's ultimate rejection of the principle *Cruikshank* espoused.³

IV.

WHETHER THE SECOND AMENDMENT IS APPLICABLE TO THE STATES VIA THE DUE PROCESS CLAUSE OF THE FOURTEENTH AMENDMENT IS AN IMPORTANT QUESTION OF FEDERAL LAW THAT HAS NOT BEEN, BUT SHOULD BE, SETTLED BY THIS COURT.

What is generically referred to as "gun control"⁴ is an issue that, like abortion, generates a lot of controversy. Like abortion, many of the attempts to restrict, or pro-

³ Despite the fact that *Cruikshank*'s holding that *none* of the Bill of Rights are applicable to the States has been long since discarded by the Supreme Court, the Court of Appeals clings to it like it did to *Plessy v. Ferguson*, 163 U.S. 537, 16 S.Ct. 1138, 41 L.Ed. 256 (1896) when, in a one-page opinion, it upheld racial segregation of athletic activities in public parks and playgrounds in Baltimore. See *Boyer v. Garrett*, 183 F.2d 582 (4th Cir. 1950).

⁴ To people who oppose the private ownership of firearms, "gun control" is often a euphemism for prohibition. Attorney Ronald Goldfarb wrote in an op-ed piece in the *Washington Post*, "[n]o reform can be meaningful without a tough program for dis-

[footnote continued]

hibit⁵ the private ownership of firearms take place at the state or local level. The infringement of a right is no less significant when accomplished via state or local law, as opposed to an act of Congress. Whether the protections afforded by the Second Amendment are applicable

mantling existing arsenals, applying not just to handguns but to all assault weapons (and ammunition). After a brief period of amnesty, the dismantling of all unregistered and unregulated weapons must be swift and thorough." "Domestic Disarmament", *Washington Post*, November 21, 1993, page C3.

Sen. Daniel Patrick Moynihan of New York advocates that a 10,000 percent tax be levied on certain types of ammunition, effectively raising its cost out of sight. "Guns Don't Kill People. Bullets Do." *New York Times*, December 12, 1993, page E15. Adoption of a "prohibitive excise tax on the sale of ammunition" is also advocated by Lloyd Cutler, White House Counsel to both Presidents Carter and Clinton. "License and Restrict Handguns", *Washington Post*, December 21, 1993, page A23.

After passage of the "Brady Bill" (which imposed a five business day waiting period on the sale of handguns) the *Washington Post* editorialized that, "[t]here remains much more to do (especially in regard to banning assault weapons), . . ." "Gun Law From Barth to Brady", *Washington Post*, December 1, 1993, Page A24. In another editorial entitled "Gun Control In Haiti", this newspaper equated gun control with firearms confiscation by American troops occupying that island. *Washington Post*, November 29, 1994, Page A22.

⁵ Any comprehensive listing of attempts to seriously restrict or prohibit the private ownership of firearms would exceed the limits imposed by Rule 33. What follows is only a minuscule sampling of efforts at local attempts at *prohibiting* private gun ownership.

The Chicago Housing Authority has adopted lease provisions prohibiting tenants from possessing firearms or ammunition. This applies even to persons who are otherwise in compliance with applicable state and city laws, such as the registration requirements of Chicago Code Sec. 8-20-040). Dowlut, *Bearing Arms In State Bills Of Rights, Judicial Interpretation, And Public Housing*, 5 St. Thomas Univ. L.R. 203, 212-214 (1992). Similar lease restrictions imposed by the Portland, Maine Housing Authority were recently invalidated by the Maine Supreme Judicial Court on

[footnote continued]

to the States is, therefore, of great importance to millions of Americans whose possession of firearms may be adversely affected by local laws.

People have a fundamental right to defend themselves against criminal assaults. *United States v. Panter*, 688 F.2d 268, 271 (5th Cir. 1982). For many adults, firearms offer the only practical and effective means of self-defense against armed, violent attackers. The importance of having access to firearms for self-defense is underscored by the fact that local governments have no obligation to protect any particular individual. See *DeShaney v. Winnebago County Department Of Social Services*, 489 U.S. 189, 196-97, 109 S.Ct. 998, 1003, 103 L.Ed.2d 249 (1989), *South v. Maryland*, 59 U.S. 396, 15 L.Ed.

grounds other than the Second Amendment. *John Doe v. Portland Housing Authority*, Decision No. 7191, April 4, 1995.

Morton Grove, Ill. Village Ordinance No. 81-11 bans the private possession of handguns, subject to certain exceptions. No exception is made for people who simply want to keep a handgun at home for self-defense. The ordinance was unsuccessfully challenged as being violative of the Illinois State Constitution and the Second and Ninth Amendments of the United States Constitution. See *Quilici v. Village of Morton Grove*, 695 F.2d 261 (7th Cir. 1982), *cert. denied*, 464 U.S. 863 (1983).

The cities of Kenosha and Milwaukee, Wisconsin held referendums in November, 1994 on virtually identical ordinances that would have outlawed private possession of handguns with a barrel shorter than 10 inches. None of the exemptions in either ordinance would have permitted possession of a handgun at home for self-defense. The measure lost in Milwaukee by a 2 to 1 margin with 47,721 votes in favor, and 97,421 against. In Kenosha the ordinance lost by a margin of almost 3 to 1 with 6,382 votes in favor, and 17,537 votes against.

The District of Columbia has prohibited the acquisition of new handguns by its residents since 1976. All firearms, including handguns, must be registered. D.C. Code, Sec. 6-2311. However, D.C. Code, Sec. 6-2312(4) provides that no registration certificate shall be issued for a pistol not validly registered prior to September 24, 1976.

433 (1856). Ironically, the same localities who would disarm their inhabitants can disclaim any obligation to protect them.⁶

The legislative history of the Fourteenth Amendment demonstrates that its drafters intended the first section to restrain the power of the States to abridge personal rights guaranteed by the first eight amendments to the Constitution. Cottrol & Diamond, *The Second Amendment: Toward An Afro-Americanist Reconsideration*, 80 GEO L.J. 309, 346 (1991), Van Alstyne, *The Second Amendment and The Personal Right to Arms*, 43 DUKE L.J. 1236, 1251-52 (1994). However, not long after ratification of the Fourteenth Amendment this Court held that the Bill of Rights operated only as a restraint upon the federal government. *United States v. Cruikshank*, 92 U.S. 542, 23 L.Ed. 588 (1876). Via *Cruikshank*, this Court effectively repealed the Due Process Clause of the Fourteenth Amendment. As noted above, beginning in 1897 this Court has subsequently held other portions of the Bill of Rights as being applicable to the States via the Due Process Clause.

In *The Embarrassing Second Amendment*, 99 YALE L.J. 637, 653 (1989), Prof. Sanford Levinson of the University of Texas Law School questions whether *Cruikshank* and *Presser* should still be considered binding precedent:

The first "incorporation decision," *Chicago, B. & Q.R. Co. v. Chicago*, was not delivered until eleven years after *Presser*, one therefore cannot know if the judges in *Cruikshank* and *Presser* were willing to concede that *any* of the amendments comprising the Bill of Rights were anything more than limitations

⁶ See note 5, *supra*.

on congressional or other national power. The obvious question, given the modern legal reality of the incorporation of almost all of the rights protected by the First, Fourth, Fifth, Sixth, and Eighth Amendments, is what exactly justifies treating the Second Amendment as the great exception. Why, that is, should *Cruikshank* and *Presser* be regarded as binding precedent any more than any of the other "pre-incorporation" decisions refusing to apply given aspects of the Bill of Rights against the States? (emp. in original)

V.

IN AFFIRMING THE DISMISSAL OF THE COMPLAINT BY THE DISTRICT COURT, THE COURT OF APPEALS DISREGARDED WELL-ESTABLISHED PRECEDENT.

A. The Court of Appeals mis-applied a standard that is relevant only in cases of unintentional conduct.

In holding that the Due Process Clause was not violated in this case, the Court of Appeals relied on *Rucker v. Harford County*, 946 F.2d 278 (4th Cir. 1991), *cert. denied*, 112 S.Ct. 1175 (1992) [App. 29a]. *Rucker* involved the *unintentional* shooting of a bystander while police were attempting to apprehend a fleeing criminal. In *Rucker*, 946 F.2d at 281, the Court of Appeals cited *Daniels v. Williams*, 474 U.S. 327, 331, 106 S.Ct. 662, 665, 88 L.Ed.2d 662 (1986) in support of its holding that the residual protections of "substantive due process"

run only to state action so arbitrary and irrational, so unjustified by any circumstance or governmental interest, as to be literally incapable of avoidance by any pre-deprivation procedural protections or of adequate rectification by any post-deprivation state remedies.

Daniels v. Williams, like *Rucker*, involved unintentional conduct on the part of the defendants. *Daniels* held that "the Due Process Clause is simply not implicated by a *negligent* act of an official causing unintended loss of or injury to life, liberty or property." 474 U.S. at 328, 106 S.Ct. at 663 (emp. in original). In discussing the Due Process Clause, this Court in *Daniels* stated that "Historically, this guarantee of due process has been applied to *deliberate* decisions of government officials to deprive a person of life, liberty, or property." 474 U.S. at 331, 106 S.Ct. at 665 (emp. in original). Cf., *Kellogg v. City of Gary*, 562 N.E.2d 685 (Ind. 1990). In *Kellogg* the Supreme Court of Indiana upheld a Sec. 1983 action in which the City of Gary refused to even issue applications for handgun carry permits. In doing so, the court held that a state law right to bear arms for self-defense and for defense of the state is an interest in both liberty and property protected by the Fourteenth Amendment and which can serve as the basis for a Sec. 1983 action. *Id.* at 694-95.

The decision to disapprove petitioner's application to purchase a firearm is alleged to have been deliberate and made with knowledge that there was no lawful basis for disapproval. In the context of a case alleging deliberate misconduct, *Daniels v. Williams* is inapplicable.

B. The Court of Appeals overlooked its usual standard in reviewing Rule 12(b)(6) motions, and stated as fact something that is not apparent from the record or even suggested by respondents.

In order to excuse the respondents' unlawful conduct in disapproving the petitioner's application to purchase a firearm, the Court of Appeals stated as fact something that is not apparent from the record, or even suggested

by the respondents in their brief. Petitioner asks only that her case be decided on the basis of the record.

The Court of Appeals concluded that although respondents apparently violated state law, they were compelled to do so because of time constraints:

The licensing division of the Maryland State Police received the [petitioner's] application [to purchase a firearm] on September 18, 1990. It was strapped for time — Maryland law gives the police only seven days to deny the application; if it does not act, the dealer may legally sell the firearm. 27 Md. Code Ann. Sec. 442(b)(1992) [App. 26a].

The Court also discussed what “forced” the respondents to “streamline” the investigation required by the legislature:

Though their acts apparently violated state law, these police officers were forced by extreme time constraints to streamline investigations. They erred on the side of caution by denying applications where a computer check showed arrests with unknown dispositions. We cannot say that this corner cutting was “unjustified by circumstance or governmental interest” or that its effect was “literally incapable of . . . adequate rectification by any post-deprivation state remedies” [App. 30a].

The statute giving the State Police seven days in which to disapprove an application to purchase a firearm was enacted in 1966. Legislatures are presumed to intend to enact statutes which are constitutional and otherwise valid. *Port Const. Co. v. Gov't Of Virgin Islands*, 359 F.2d 663, 665 (3rd Cir. 1966). Since 1966, the Maryland General Assembly has never seen the need to expand the period of time in which the State Police must decide whether to disapprove an application to purchase a fire-

arm. The Court of Appeals substituted its judgment for that of the Maryland legislature in holding that the seven day period was not sufficient for respondents to conduct the investigation required by law. By excusing respondents' unlawful conduct which is sanitized as "streamlining" or "corner cutting" the Court of Appeals laid the foundation for its conclusion that respondents' conduct was: (a) justified and/or (b) not incapable of "adequate rectification by any post-deprive state remedies."

There is nothing in the record below which justified respondents' willful disregard of the law they were sworn to uphold, regardless of whether it is characterized as mere "streamlining" or "corner cutting". Petitioner alleges that respondents knew they had no lawful basis to disapprove her application, and that they acted willfully and maliciously and with a reckless disregard of the appellant's constitutional rights. The standard of review used in evaluating a Rule 12(b)(6) motion is whether the complaint, accepting the allegations as true, allows a recovery. *Waterford Citizens Ass'n v. Reilly*, 970 F.2d 187, 1290 (4th Cir. 1992).

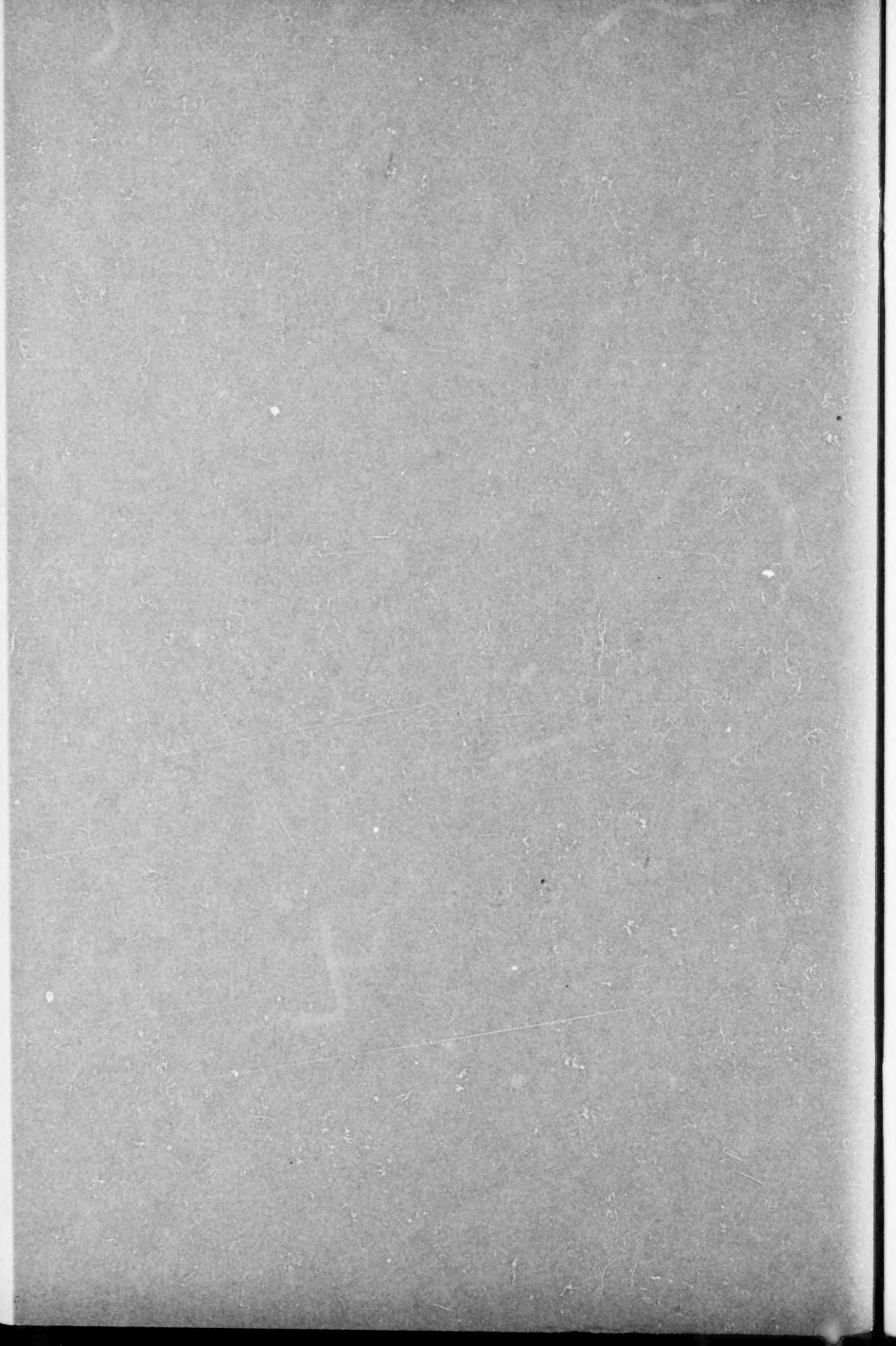
Petitioner ultimately prevailed in a judicial appeal of the respondent's conduct. Unfortunately, no post-deprivation state remedy could restore to petitioner *the free exercise of her right* while the case was on appeal in state court. By way of analogy, if petitioner had been denied the right to vote solely on account of her race she could undoubtedly have that denial overturned by a state court. However, in the interim, she would have been denied the exercise of that right, which no post-deprivation remedy could restore to her.

CONCLUSION

For the reasons set forth above, petitioner prays that her Petition For Writ Of Certiorari be granted.

Respectfully submitted,

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APPENDIX A

RELEVANT CONSTITUTIONAL PROVISIONS AND STATUTES

U.S. Const. Amendment 2:

A well regulated Militia being necessary to the security of a free state, the right of the people to keep and bear arms, shall not be infringed.

U.S. Const, Amendment 14, Section 1:

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

42 U.S.C. §1983

Civil action for deprivation of rights

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. For the purposes of this section, any Act

of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia.

(R.S. §1979; Dec. 29, 1979, P. L. 96-170, §1, 93 Stat. 1284.)

Fed. R. Civ. P. 12(b)

Rule 12

**Defenses and Objections — When and How
Presented — By Pleading or Motion —
Motion for Judgment on the Pleadings**

* * *

(b) **How Presented.** Every defense, in law or fact, to a claim for relief in any pleading, whether a claim, counterclaim, cross-claim, or third-party claim, shall be asserted in the responsive pleading thereto if one is required, except that the following defenses may at the option of the pleader be made by motion; (1) lack of jurisdiction over the subject matter, (2) lack of jurisdiction over the person, (3) improper venue, (4) insufficiency of process, (5) insufficiency of service of process, (6) failure to state a claim upon which relief can be granted, (7) failure to join a party under Rule 19. A motion making any of these defenses shall be made before pleading if a further pleading is permitted. No defense or objection is waived by being joined with one or more other defenses or objections in a responsive pleading or motion. If a pleading sets forth a claim for relief to which the adverse party is not required to serve a responsive pleading, the adverse party may assert at the trial any defense in law or fact to

that claim for relief. If, on a motion asserting the defense numbered (6) to dismiss for failure of the pleading to state a claim upon which relief can be granted, matters outside the pleading are presented to and not excluded by the court, the motion shall be treated as one for summary judgment and disposed of as provided in Rule 56, and all parties shall be given reasonable opportunity to present all material made pertinent to such a motion by Rule 56.

Md. Ann. Code art. 27, Sec. 442

Sec. 442. Sale or transfer of pistols and revolvers.

(a) *Right to regulate sales preempted by State.*—All restrictions imposed by the laws, ordinances or regulations of all subordinate jurisdictions within the State of Maryland on sales of pistols or revolvers are superseded by this section, and the State of Maryland hereby preempts the rights of such jurisdictions to regulate the sale of pistols and revolvers.

(b) *Application to purchase or transfer.*—No dealer shall sell or transfer any pistol or revolver until after seven days shall have elapsed from the time an application to purchase or transfer shall have been executed by the prospective purchaser or transferee, in triplicate, and forwarded by the prospective seller or transferor to the Superintendent of the Maryland State Police.

(c) *Same—Disposition of copies.*—The dealer shall promptly after receiving an application to purchase or transfer, completed in accordance with subsection (e) below, forward one copy of the same, by certified mail, to the Superintendent of the Maryland State Police. The

copy forwarded to the said Superintendent shall contain the name, address, and signature of the prospective seller or transferor. The prospective seller or transferor shall retain one copy of the application for a period of not less than three years. The prospective purchaser or transferee shall be entitled to the remaining copy of the application.

(d) *Same—Fees.*—(1) a person who makes an application to purchase or transfer a pistol or revolver shall pay to the dealer a \$10 application fee with the application to purchase or transfer. [NOTE: *The above provision was not in effect as of September, 1990. It was added to Sec. 442 in 1992.*]

(2) The dealer shall forward the \$10 application fee along with the application to the Superintendent of the Maryland State Police.

(e) *Same—Statement of penalties for supplying false information required.*—The application to purchase or transfer shall bear the following legend: "Any false information supplied or statement made in this application is a crime which may be punished by imprisonment for a period of not more than three years, or a fine of not more than \$5,000, or both."

(f) *Same—Information required.*—The application to purchase or transfer shall contain the following information:

(1) Applicant's name, address, occupation, place and date of birth, height, weight, race, eye and hair color and signature. In the event the applicant is a corporation, the application shall be completed and executed by a corporate officer who is a resident of the jurisdiction in which the application is made.

(2) A statement by the applicant that he or she:

(i) Has never been convicted of a crime of violence, in this State or elsewhere, or of a violation of any of the provisions of Secs. 286, 286A or 286C of this article or any conspiracy to commit any crimes established by those sections, or of any of the provisions of this subtitle.

(ii) Is not a fugitive from justice.

(iii) Is not a habitual drunkard.

(iv) Is not an addict or a habitual user of narcotics, barbiturates or amphetamines.

(v) Has never spent more than thirty consecutive days in any medical institution for treatment of a mental disorder or disorders, unless there is attached to the application a physician's certificate, issued within thirty days prior to the date of application certifying that the applicant is capable of possessing a pistol or revolver without undue danger to himself or herself, or to others.

(vi) Is at least 21 years of age as required by federal law.

(vii) Has or has not submitted a prior application and, if so, when and where.

(3) The date and hour the application was delivered in completed form to the prospective seller or transferor by the prospective purchaser or transferee.

(g) *Investigation of application; procedure when false information is discovered or the application is incomplete.*—The Superintendent of the Maryland State Police may request the assistance of the police commissioner of Baltimore City, the chief of police in any county maintaining a police force, or the sheriff in a county not maintaining a police force and shall promptly upon receipt of the application to purchase or transfer conduct an investigation in order to determine the truth

or falsity of the information supplied and statements made in said application. If it be thereupon determined that any false information or statement has been supplied or made by the applicant, or that the application has not been properly completed, the said Superintendent or any specific member of the State Police authorized by the Superintendent to act as his agent in matters relating to pistol or revolver sales shall notify the prospective seller or transferor, in writing, within seven days from the date the executed application to purchase or transfer was forwarded by certified mail, of his disapproval of said application. Written notice of such disapproval shall be thereafter forwarded by the said Superintendent and/or his duly authorized agent or agents to the prospective purchaser or transferee. The date upon which the executed application to purchase or transfer was forwarded by certified mail by the prospective seller or transferor shall be considered as the first day of the seven-day period allowed for notice of disapproval to the said prospective seller or transferor. If the seventh day of the seven-day period allowed for the said notice of disapproval shall fall on a Sunday or legal holiday, the computation period shall be extended to the first day next following, which is neither a Sunday nor a legal holiday. [NOTE: *Until 1992, this was subsection (f) of Sec. 442.*]

(h) *Sale prohibited to disapproved applicant; exceptions.*—No dealer shall sell or transfer a pistol or revolver to an applicant whose application has been timely disapproved, unless such disapproval has been subsequently withdrawn by the Superintendent of the Maryland State Police and/or his duly authorized agent or agents or overruled by the action of the courts pursuant to subsection (i) of this section.

(i) *Hearing; judicial review.*—(1) Any prospective purchaser or transferee aggrieved by the action of the State Police may request a hearing within 30 days from the date when written notice was forwarded to the aggrieved person by writing to the Superintendent of State Police, who shall grant the hearing within fifteen days of the request.

(2) The hearing and subsequent proceedings of judicial review, if any, thereupon following shall be conducted in accordance with the provisions of the Administrative Procedure Act.

(3) The hearing shall be held in the county of the legal residence of the aggrieved person. If the aggrieved person is not a State resident, the hearing shall be held at a location designated by the Superintendent of the State Police.

(j) *Notification of completed transaction; permanent record of sales and transfers.*—Any dealer who sells or transfers a pistol or revolver in compliance with this subtitle shall forward a copy of the written notification of such completed transaction, within seven days from the date of delivery of the said pistol or revolver, to the Superintendent of the Maryland State Police, whose duty it shall be to maintain a permanent record of all such completed sales and transfers of pistols and revolvers in the State. The notification shall contain an identifying description of the pistol or revolver sold or transferred including its caliber, make, model, manufacturer's serial number, if any, and any other special or peculiar characteristics or marking by which the said pistol or revolver may be identified.

(k) *Construction of section.*—Nothing in this section shall be construed to affect sales and/or transfers for

bona fide resale in the ordinary course of business of a person duly licensed under Sec. 443 of this subtitle, or sales, transfers, and/or the use of pistols or revolvers by any person authorized or required to sell, transfer, and/or use such pistols or revolvers as part of his or her duties as a member of any official police force or other law enforcement agency, the armed forces of the United States, including all official reserve organizations, or the Maryland National Guard.

(1) *Penalties.*—Any person who knowingly gives any false information or makes any material misstatement in an application required by this section, or who fails to promptly forward such application to the Superintendent of the Maryland State Police or his duly authorized agent or agents, or who sells or transfers a pistol or revolver to a person other than the one by whom application was made, or who otherwise sells, transfers, purchases, or receives transfer of a pistol or revolver in violation of this section, shall upon conviction thereof be subject to the penalties hereinafter provided in Sec. 448 of this subtitle.

Md. Ann. Code art. 27, Sec. 445

Sect. 445. Restrictions on sale, transfer and possession of pistols and revolvers.

(a) *Right to regulate transfer and possession of pistols and revolvers preempted by State.*—All restrictions imposed by the laws, ordinances or regulations of all subordinate jurisdictions within the State of Maryland on possession or transfers by private parties of pistols and revolvers are superseded by this section and the State of Maryland hereby preempts the right of such jurisdictions to regulate the possession and transfer of pistols and revolvers.

(b) *Sale or transfer to criminal, fugitive, etc.*—A dealer or person may not sell or transfer a pistol or revolver to a persons whom he knows or has reasonable cause to believe has been convicted of a crime of violence, or of a violation of any of the provisions of Sec. 286, Sec. 286A, or Sec. 286C of this article, or any conspiracy to commit any crimes established by those sections or of any of the provisions of this subtitle, or is a fugitive from justice, or is a habitual drunkard, or is addicted to or a habitual user of narcotics, barbiturates or amphetamines, or is of unsound mind, or to any person visibly under the influence of alcohol or drugs, or to any person under 21 years of age as required by federal law.

(c) *Possession by criminal, fugitive, etc.*—A person may not possess a pistol or revolver if the person:

(1) Has been convicted of:

(i) A crime of violence; or

(ii) Any provision of this subtitle; or

(2) Is:

(i) A fugitive from justice;

(ii) A habitual drunkard;

(iii) A habitual abuser of narcotics, barbiturates, or amphetamines; or

(iv) Suffering from a mental disorder as defined in Sec. 10-101(h)(2) of the Health-General Article and has a history of violent behavior against another person or self, or has been confined for more than 30 consecutive days to a facility as defined in Sec. 10-101 of the Health-General Article, unless the person possesses a physician's certification that the person is capable of possessing a pistol or revolver without undue danger to the person or to others.

APPENDIX B

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MARYLAND**

Case No. PJM93-2609

APRIL LOVE,

Plaintiff

vs.

ROBERT G. PEPERSACK, SR., et al.,

Defendants

Baltimore, Maryland

April 1, 1994

11:30 A.M.

**TRANSCRIPT OF ORAL OPINION OF COURT
BEFORE THE HONORABLE PETER J. MESSITTE**

TRANSCRIPT ORDERED

BY:

HOWARD J. FEZELL, ESQ.

APPEARANCES:

For the Plaintiff:

By: HOWARD J. FEZELL, ESQ.

203A Broadway Street

Suite 9

P.O. Box 588

Frederick, Maryland 21701

(301) 846-0241

For the Defendants:

By:

MARY HOLDSWORTH BOWEN, ESQ.

1201 Reisterstown Road

Pikesville, Maryland 21208
(410) 653-4228

Court Recorder Operator:

Stallings

Transcriber:

Sherry Thomson

[2]

PROCEEDINGS

(Call to order of the Court at 11:30 a.m.; prior proceedings not transcribed as per order)

THE COURT: Court is prepared to rule.

This is an action for relief under Article ___, Title 42, Section 1983 of the United States Code. It is brought by plaintiff, April Love, against various state employees connected with the Maryland State Police.

In summary, it is a claim for money damages to represent, to redress the deprivation of what plaintiff claims were rights guaranteed her under the federal Constitution consistent with the language of 42 U.S.C., Section 1983, and it arises out of the efforts of Ms. Love to obtain, in 1990, the right to purchase a firearm from a dealer in Maryland.

The individuals involved are Robert G. Pepersack, Merrill A. Messick, Ernest Pletcher, and Elmer Tippet, Jr. The state of Maryland is also made a defendant in this case.

Mr. Pepersack, at the time of the events in question, was supervisor of the firearms license section of the Maryland State Police. Mr. Messick was commander of the licensing division of the Maryland State Police. Mr. Pletcher was a corporal in the Maryland State Police, assigned to the firearms section of the licensing division of the state police. And Mr. Tippet was superintendent of the Maryland State Police.

[3] Each of these individuals are sued in their individual capacity although they are alleged, at the time that they were acting, to have been acting as officials.

The — Certain preliminary issues need to be addressed with regard to this case to get beyond the, the, even to discuss even whether there have been constitutional violations or not.

And the first would go to whether the state of Maryland has any business in this suit at all; that is, the state of Maryland itself. And that matter, in the Court's view, is disposed of summarily by the argument made by the state that the Eleventh Amendment to the U.S. Constitution basically immunizes the state from suit. That goes back as far as (INAUDIBLE). It has been reaffirmed many times; in *Pennhurst State School and Hospital v. Halderman*, 465 U.S. 89, a 1984 Supreme Court case, and also *Weller v. Department of Social Services*, a 901 F.2d 387 Fourth Circuit case from 1990.

Accordingly, the Court grants the defendants' motion to dismiss the state of Maryland as a defendant.

The other individuals are sued and it is said by counsel for those individuals that really they are being sued in their official capacity, not in their individual capacity, and that, that therefore they should, this should be treated as a suit against the state and the suit should also be dismissed as to them.

[4] The Court agrees with the plaintiff in this case that effectively what we have here is a claim against state officials but they are sued in their individual capacity and as such they are liable to suit. *Hafer v. Mellow*, 112 Sup. Ct. 358, 1991, in the Court's view, makes them subject to suit under the present circumstances.

We turn, however, under all those circumstances to the issue of whether a cause of action is stated as to these four defendants now fairly in suit.

42 U.S.C. 1983 reads as follows. Quote, every person who under color of any statute, ordinance, regulation, custom, or usage of any state or territory of the District of Columbia subjects or causes to be subjected any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. And that's the end of the section for present purposes. We need not read more.

The first and foremost, as the defendants point out, it is required of the plaintiffs, plaintiff in this case, that she demonstrate that she was in fact, she had some constitution—, federal constitutional right that she was deprived of, that she be, that there be such a right that she speaks of.

[5] There are, as the Court understands it, three separate constitutional rights that the plaintiff relies upon. She says, first, that she has been denied a property right under the Fourteenth Amendment with regard to the acquisition of this firearm. She says she has been denied a right to contract by reason of the disapproval of her application, and she says finally she has been denied of her constitutional right to bear arms under the Second Amendment to the U.S. Constitution.

I will start with the, the issue of ability to contract, which the Court has not yet seen as a separately stated federal constitutional right and I am, without much more comment, able to conclude that there is no separately cognizable federal constitutional right to contract that could be asserted under Section 1983. And so, to the extent that the complaint is predicated on that theory, it is rejected.

The next matter that I will turn to as far as the federal constitution might concern is the right to bear arms under the Second Amendment. It is contended by the plaintiff that consistent with the concept of order, liberty if you will, that the Second Amendment really is not dissimilar from all other federal Bill of Rights amendments and that it ought to, to be applicable to the states.

However persuasive that argument may be, it is clear to this judge that that proposition has not ever been accepted [6] by courts in this country. Indeed, the Supreme Court of the United States has made it clear that the Second Amendment to the U.S. Constitution does not apply to the states. That was held as early as *U.S. v. Crookshank*, which is 92 U.S. 542-553, an 1875 case where the court stated, concerning the right of bearing arms for a lawful purpose, quote, this is not a right granted by the constitution; neither is it in any manner dependent upon that instrument for its existence. The Second Amendment declares that it shall not be infringed but this, as has been seen, means no more than that it shall not be infringed by Congress.

And then that review, that position had been reaffirmed in *Pressor v. Illinois*, whci is a 198— Excuse me — an 1886 case which appears at 116 U.S. 252. And has been affirmed also by the Maryland Court of Special Appeals in *Underdunk (PHONETIC) v. Handgund Permit Review Board*, 44 Md.F.132, which is a 1979 case.

The Court, therefore, feels it need not inquire beyond the matter of the inapplicability of the Second Amendment to the states because under 42 U.S.C. 1983 it has to be a federal constitutional right or other law that is the matter or the subject of deprivation, and not some other law.

To the extent that the Maryland Constitution may incorporate by reference the Second Amendment, that

may constitute a state constitutional claim that could be [7] litigated in state court, but it is not one that is litigable in federal court pursuant to 42 U.S.C., Section 1983.

That leaves the third theory of, of deprivation of right that plaintiff relies upon and she says that this is a deprivation of her substantive due process rights under the Fourteenth Amendment, and she characterizes her interest in that regard as a property interest that has been affected in this case.

The Court does agree, to this extent, with the plaintiff that one proceeds in the analysis of a deprivation of due process right under the claim of entitlement standard and, that is, that whether someone is entitled to a permit or approval of, of a certain activity will depend on whether the local agency lacks all discretion to, to deny issuance or the, of a permit or withhold approval. That concept appeared in *Gardner v. Mayor and City Council of Baltimore*, which is 90—, 969 F.2d 63, a Fourth Circuit case from 1992.

So that before one looks at the substantive due process standard there has to be, first, a legitimate claim of entitlement and then, if there is, one looks at the issue of whether there has been arbitrary, capricious behavior, or another way of saying that is whether there is behavior that shocks the conscience.

So we look first at whether there is a claim of entitlement in this case, because even if there — If there [8] is no claim of entitlement, then however arbitrary the action may be, it is not actionable under 42 U.S.C. 1983. It yet may be actionable under state law.

The statute that the plaintiff proceeds under and makes reference to in this case is a Maryland state statute which appears at Article 27, Section 442, regulating the sale or transfer of pistols and revolvers. And basically

the, the statute provides that a dealer is precluded from selling or transferring a pistol or revolver until seven days have elapsed from the time of the application to purchase the revolv—, revolver and from the time that the prospective purchaser executes an application and submits it to the Maryland State Police for approval.

Now in this case there's no question that an application was, for approval was executed and it is also true that within seven days the Maryland State Police disapproved the application.

It is provided in the stature, 27 Maryland Code, Article 27 Maryland Code, Section 442, (e) that certain information has to be provided by the applicant, among that information that the individual has never been convicted of a crime of violence in this state or elsewhere or a violation of certain provisions related to drug offenses.

In this case the applicant, Ms. Love, did indicate that, that she certified that she was not disqualified and [9] that is all that she said.

Pursuant to Article 27, Section 442, sub (f), the superintendent was, upon receipt of the application, to commence his or its investigation of the application in order to determine the truth or falsity of information supplied and the statements made in said application. And that, that apparently did occur.

Now as I understand the representation in this case there was some effort made within the seven days to, to find out what was going on in this case and there apparently was at least some response from the federal computer network, suggesting that this individual, Ms. Love, which is her true name, was, had been the subject of prior arrests in other states, and I think there were three arrests that were indicated. And apparently no indication of what the disposition was relative to those arrests.

Without the matter being further resolved but with the seven day period closing in, apparently the state superintendent of police or his representatives disapproved the application, and thereupon there was a judicial review, a hearing sought and the judicial review sought of those decisions as further provided in subsection (g) of the reference to statute.

At the hearing before a state hearing examiner the decision of the state superintendent was affirmed apparently, [10] and then later a petition for review was filed with the Circuit Court for Montgomery, for Prince George's County relative to the propriety of that decision.

MR. FEZELL: Excuse me, Your Honor.

THE COURT: Certainly.

MR. FEZELL: If I may, just a brief correct. The appeal hearing was heard by Sergeant Pepersack, who made the decision to disapprove, so the appeal was in fact conducted by the individual—

THE COURT: Was there a hearing officer—

MR. FEZELL: —who did the disapproval.

THE COURT: — as well?

MR. FEZELL: No, Your Honor.

THE COURT: All right, I stand corrected. It was done internally. There was a hearing by someone, in fact one of the defendants in the case, who also denied the, the license. And then judicial review was sought in the Circuit Court for Prince George's County and, based on this administrative decision, based on presumably a substantial evidence standard, arbitrary and capricious standard, and Judge McCollough (PHONETIC) of the Circuit Court for Prince George's County felt that the superintendent of the state police had acted arbitrarily and capriciously and, therefore, ordered that the approval be given with regard to the application forthwith.

[11] Now the — Without — I don't have the transcript of Judge McCollough's ruling but let us assume for present purposes that he decided that the superintendent of police acted arbitrarily and capriciously in not approving this application and, as I understand it further, in putting upon the applicant herself some duty to demonstrate that she had not been convicted of these offenses which the computer showed she had been arrested for.

Well, I don't know that I need any interruption at this point. It's not —

MR. FEZELL: Fine.

THE COURT: — not too central because I — Whatever the procedure is I, I don't have the record of Judge McCollough in front of me and I'm really into my opinion now so you'll have to sort of take it as I deliver it.

In any event, I'm, I'm — We'll assume for present purposes that Judge McCollough found that this was arbitrary and capricious action and, essentially, reversed the decision of the superintendent and ordered that eventually the application be approved.

The suggestion by the plaintiff is that the Court may well now be bound by Judge McCollough's ruling as to the finding of arbitrary and capricious action and that the, that therefore the Court would be required to permit this cause of action to proceed.

[12] Now the Court does not accept the proposition that it is necessarily bound by Judge McCollough's finding in this case as a matter of law and, frankly, even if, if the Court is not, were not bound by it, the Court sees nothing in the statute itself that necessarily says that the superintendent of police must approve an application within seven days if, even if his investigation is still pending regarding the existence or nonexistence of convictions.

But I need not reach that point at this time because before you get to the issue of whether there has in fact been arbitrary and capricious action you first have to demonstrate your claim of entitlement. And the Court believes that the plaintiff has not so demonstrated that in this case.

This is not the kind of case where there is absolutely no discretion whatsoever. There is authority, as the Court reads it, in the police department to investigate the criminal background of the individual and that authority, in the Court's view, is sufficient to defeat any claim of an entitlement such as to constitute a protectible property interest under the Fourteenth Amendment.

In *Weller v. Department of Social Services for Baltimore*, 901 F.2d 387, a 1990 Fourth Circuit case, although discussing procedural due process, the Court did say, at page 392, that there is no property or liberty interest in the specific investigative procedures which one contends were [13] neglected. No due process claim can rest upon the state's failure to conduct them.

Likewise, the Court would find no due pros—, no property, protectible property interest in whether or not the superintendent of police in this case had been diligent or not diligent in regard to the existence of a conviction for these offenses. But — And so I find no claim of entitlement such as to find a protectible property interest.

Even if I did, however, find a protectible interest in these circumstances, the Court would not find that the actions in this case were arbitrary and capricious in the sense that 42 U.S.C. 1983 defines them.

What is clear, and it is clear not only in the context of an application for approval to carry a gun but it may be application to develop property rights or others, that arbitrary, capricious in the federal, 42 U.S.C. 1983 sense is far narrower than arbitrary and capricious as defined

under state law as to whether there is substantial evidence or not to justify a decision. And that's one, another reason why this Court would not be bound by the finding of the state court, because the standard is radically different, much narrower.

There is no, nothing in this action, in this entire transaction that the Court could say shocks the conscience, is totally divorced from rationality, which is the kind of [14] standard which obtains in the federal arbitrary, capricious sense, but not in the state arbitrary and capricious sense.

A decision maker can still have discretion and act arbitrarily in, under state law, and be reversed, and yet not state a federal cause of action which, in the Court's view, is what has happened here.

There well may have been arbitrary action by the superintendent of police in denying the applicant's rights in this case, but not such as to shock the conscience and be so totally divorced from rationality as to state the deprivation of a, of a, of a due process right under the federal constitution.

So, as I say, number one, I do not believe that there even is a claim of entitlement in this case with regard to the, the approval of this permit, given that there is some discretion to investigate vested in the superintendent.

But even if there were a claim on entitlement, in the Court's view, the Court states as a matter of law that there is not sufficient arbitrary and capricious action within the meaning of the federal statute as to shock the conscience or be totally divorced from rationality.

On that basis, therefore, the Court finds that the, there is no remaining theory of constitutional right deprivation that would permit this action to remain in this Court, that all potential constitutional actions have been [15] properly addressed. None of them withstand,

in the Court's view, the argument made by defendants that they do not amount to protectible constitutional interests.

There well may be violations of state law. It is clear that violations of state law cannot provide the basis for a due process claim. *Clark v. Link* says that at 855 F.2d 156, a 1988 Fourth Circuit case which was, in fact, affirmed by the Supreme Court.

Sorry, that's also in — Strike that last language. *Weller* just affirmed it and *Weller* was a Fourth Circuit case as well.

And there may be claims with regard to violations of the Maryland constitution which also could properly be asserted in state court. But they don't remain in federal court.

Under all the circumstances the Court believes that the defendants' motion to dismiss is well taken. The defendants' motion to dismiss is, therefore, granted.

MR. FEZELL: Your Honor, if I may just briefly, during the body of your opinion —

THE COURT: Right.

MR. FEZELL: — you referred to the procedure as one whereby the superintendent of state police would approve an application to purchase a handgun. And as I pointed out in the body of my memorandum of points and authorities in an [16] argument today, Article 27, Section 442 does not require the superintendent of state police to approve an application.

Indeed, if you take a look at the text of Article 27, Section 442, subparagraph (f), it talks about the superintendent of state police sending a notice of disapproval to a prospective seller of a handgun in the event that he shall determine that any false information or statement has been supplied or made by the applicant or that the application has not been properly completed.

So we — This is not a situation where the superintendent of state police was withholding approval, but where he was interfering in a matter without a proper statutory basis.

THE COURT: All right. And, and I will — Accepting that correction, and I think it's a fair correction, what the statute authorizes the superintendent to do is to issue a notice of disapproval within a seven day period. And in a sense that's a denial of approval, if you will, and that's the sense in which I take it.

I don't think anything that you've said changes my view of this case. In fact the superintendent issued timely a notice of disapproval, you say without appropriate authority. And I think perhaps to some extent Judge McCollough agreed with you. But I say that it is not the kind of lack of authority that rises to the level of denial of a federal [17] constitutional claim.

May well violate the state statute, may well be arbitrary and capricious as a matter of state law because, as I see it, there is no claim of entitlement for reasons that I stated and even if there were, there is not, as a matter of law I find, action that is arbitrary and capricious within the meaning of 1983.

I still deny your recovery on that ground. But I, I accept your correction. It doesn't really affect, in my view, the decision.

Case is dismissed in federal court. I guess it's not really dismissed with, with prejudice. I think you have some causes of action that may yet be assertible unless time has run.

Speaking of that, I don't know whether you want to get this case remanded in any way to state court on your state causes of action.

MR. FEZELL: Let me think about that.

THE COURT: Well, you may need to act fairly quickly because as soon as judgment is entered here I may have, I think I've got jurisdiction under, under new federal jurisdiction law to remand cases to state court without having you lose your, your limitations rights, and that's something you'd have to think about and look at the law on that rather quickly.

[18] MR. FEZELL: Your Honor, you wouldn't happen to have a cite on that, would you?

THE COURT: I don't have the cite handy but there is a, within the last couple of years when supplemental jurisdiction's supplanted pendant jurisdiction and all that, there was a provision made for a federal court to remand state court actions as I recall without tolling the statute of limitations. So you better look at that.

I will — Let me, let me say this to you. It's now Friday. I'll give you until —

Before I enter final judgment in this case, Madam Clerk —

I'll give you until next, next Thursday. Actually, I'll give you till the end, close of business Wednesday to decide whether you want to petition for that relief.

MR. FEZELL: Fine, Your Honor.

THE COURT: If I have not gotten from you an appropriate petition and, and also allowing for me, myself, and for the defendant to oppose any kind of remand in that regard — But if you're going to file a request that I remand part of this to state court, it must be filed by the close of business Wednesday.

Failing that I will enter final judgment on Thursday. But if you file that motion then, Mr. Bowen, you'll have time, time to respond.

[19] MR. BOWEN: Thank Your Honor.

THE COURT: And then I will rule, without a promise, Mr. Fezell —

MR. FEZELL: Fine, Your Honor.

THE COURT: — I will rule on whether or not remand is appropriate.

MR. FEZELL: Fine, Your Honor.

THE COURT: Okay. All right. Thank you, gentlemen.

MR. FEZELL: Thank you.

MR. BOWEN: Thank Your Honor.

* * *

TRANSCRIBER'S CERTIFICATION

I, Sherry Thomson, do hereby certify that the foregoing is a correct transcript from the record of proceedings in the above-entitled matter.

APPENDIX C

PUBLISHED

UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

No. 94-1582

APRIL LOVE,

Plaintiff-Appellant,

v.

ROBERT G. PEPERSACK, SR.;
MERRILL A. MESSICK, JR.;
ERNEST ELDON PLETCHER;
ELMER HUNT TIPPETT, JR.;
STATE OF MARYLAND,

Defendants-Appellees.

Appeal from the United States District Court
for the District of Maryland, at Baltimore.

Peter J. Messitte, District Judge.
(CA-93-2609-PJM)

Argued: December 7, 1994

Decided: February 3, 1995

Before HALL and LUTTIG, Circuit Judges, and
CURRIE, United States District Judge, District of
South Carolina, sitting by designation.

Affirmed by published opinion. Judge Hall wrote the opinion of the Court, in which Judge Currie joined. Judge Luttig wrote a separate concurring opinion.

COUNSEL

COUNSEL: Howard J. Fezell, Frederick, Maryland, for Appellant. Mark Holdsworth Bowen, Assistant Attorney General, Pikesville, Maryland, for Appellees. ON BRIEF: J. Joseph Currant, Jr., Attorney General of Maryland, Pikesville, Maryland, for Appellees.

OPINION

HALL, Circuit Judge:

April Love appeals the dismissal of her 42 U.S.C. §1983 civil rights suit against various Maryland state troopers. We affirm.

I.

According to her complaint, in September, 1990, April Love tried to purchase a handgun at a shop in Prince George's County, Maryland. She filled out an application required by state law. All of her answers to the questions posed were true and correct.

The licensing division of the Maryland state police received the application on September 18, 1990. It was strapped for time—Maryland law gives the police only seven days to deny the application; if it does not act, the dealer may legally sell the firearm. 27 Md. Code Ann. §442(b) (1992). On September 21, Corporal Ernest Pletcher reviewed the application and a computer print-out from Maryland police and Federal Bureau of Investi-

gation files. He discovered that Ms. Love had been arrested on four occasions. In 1976, while working as a stripper, Ms. Love had been arrested twice for participating in an obscene show and once for indecent exposure. In 1978, she had been arrested and charged with two counts of battery and one of resisting arrest. She was convicted of only one of these crimes—a misdemeanor¹—though disposition of the charges was not apparent on the computer printout.

Without further investigation, Pletcher recommended that the application be denied. Sergeant Robert Peppersack reviewed the file and made the final decision to deny the application. A letter to Ms. Love reporting the denial was signed by Lieutenant Merrill Messick. In separate correspondence, Messick instructed the dealer not to sell Ms. Love the handgun.

The reason for the denial was the prior arrest record itself, and both Pletcher and Peppersack later testified that it was standard practice to deny applications on that basis. The Maryland Code lists several grounds for denying an application, but a prior arrest is not such a ground.

Love exhausted state administrative remedies without success, and then sued in state court. She won. The court ordered the state police to approve her application. Love then filed this §1983 suit—alleging violations of substantive due process, a “right to contract,” and the Second Amendment—against Pletcher, Peppersack, Messick, and the state police commander, Colonel Elmer Tippet. The defendants moved to dismiss, and the district court granted the motion.

Love appeals.

¹She paid a fine upon conviction in Florida of participating in an obscene show.

II.

We divide due process into "substantive" and "procedural" prongs, though the latter term is redundant and the first is, strictly speaking, a conflict in terms. Love asserts only a substantive due process claim. Substantive due process is a far narrower concept than procedural; it is an absolute check on certain governmental actions notwithstanding "the fairness of the procedures used to implement them." *Weller v. Dep't of Social Services*, 901 F.2d 387, 391 (4th Cir. 1990) (quoting *Daniels v. Williams*, 474 U.S. 327, 331 (1986)).

To win her case, Love must first have a property right in the approval of her application to purchase a handgun. Property rights can be created and defined by state laws. *Board of Regents v. Roth*, 408 U.S. 564, 577 (1972), but laws calling for issuance of a license or permit cannot create property rights unless "the [state actor] lacks *all* discretion to deny issuance of the permit or to withhold its approval. Any significant discretion conferred upon the local agency defeats the claim of a property interest." *Gardner v. Baltimore Mayor & City Council*, 969 F.2d 63, 68 (4th Cir. 1992).

Whether Love has a property interest under *Gardner* is a close call, as is whether *Gardner* ought to even apply outside the context of land use.² The state permitting statute, 27 Md. Code Ann. §442, requires the applicant to deny all potentially disqualifying circumstances in the application itself. The police have the power to deny the

²Ownership and free use of land is "property" in perhaps the most ancient sense known to Anglo-American law. Throughout our opinion in *Gardner*, we emphasized the land-use context of our "lack of all discretion" standard, see, e.g., *id.* at 68-69, and we are unwilling to extend it where, as here, such an extension is unnecessary to our decision.

application only if it is incomplete or any information on it is false. It is a stretch to deem that power "discretionary." Nonetheless, because we decide below that Love's claim fails the second prong of the substantive due process test, we will assume without deciding that *Gardner* does govern here and that Love as a property interest in approval of her application.³

A violation of "substantive" due process occurs only where the government's actions in depriving a person of life, liberty, or property are so unjust that no amount of fair procedure can rectify them.

[T]he residual protections of "substantive due process" in this (or any) context run only to state action so arbitrary or irrational, so unjustified by any circumstance or governmental interest, as to be literally incapable of avoidance by any pre-deprivation procedural protections or of adequate rectification by any post-deprivation state remedies. Irrationality and arbitrariness imply a most stringent standard against which state action is to be measured in assessing a substantive due process claim.

Rucker v. Harford County, 946 F.2d 278, 281 (4th Cir. 1991), *cert. denied*, 112 S.Ct. 1175 (1992).

Here we agree with the district court that Love's claim fails. Though their acts apparently violated state law, these police officers were forced by the extreme time constraints to streamline investigations. They erred on the side of caution by denying applications where a com-

³ On the other hand, she had full procedural protection for this supposed property interest, including an administrative hearing and a right of access to the state courts under the state's administrative procedures act. She used these procedures and vindicated her property right, which fully explains why she has not pled a claim for denial of procedural due process.

puter check showed arrests with unknown dispositions. We cannot say that this corner-cutting was "unjustified by circumstance or governmental interest" or that its effect was "literally incapable of . . . adequate rectification by any post-deprivation state remedies." Indeed, the deprivation here was fully rectified. State courts exist in order to, among other things, protect citizens against misapplication of state law. We would trivialize the Due Process Clause to invoke it every time the citizen defeats the state in state court. The Clause is violated only where the state courts can do nothing to rectify the injury that the state has already arbitrarily inflicted.⁴

III.

Citing law review articles, Love argues that she has an individual federal constitutional right to "keep and bear" a handgun, and Maryland may not infringe upon this right.

She is wrong on both counts. The Second Amendment does not apply to the states. *Presser v. Illinois*, 116 U.S. 252 (1886); *United States v. Cruikshank*, 92 U.S. 542 (1876).⁵ Moreover, even as against federal regulation,

⁴ Love also argues that the disapproval of her application violated her "right to contract" with the gun dealer. There is no positive federal "right to contract" at all times on all subjects, though individuals are generally free to contract in a manner and with objectives that do not violate local law, and this liberty may give rise to an interest protected by the Fourteenth Amendment's Due Process Clause. See generally, *Roth*, 408 U.S. at 572. This "claim" is therefore just a component of the substantive due process claim.

⁵ Love makes an odd argument that the Maryland Constitution incorporates the Second Amendment, and that therefore the Second Amendment "applies" to Maryland. It may well "apply" to Maryland in this manner, but, if it does, it is only as a matter of state law, and violations of state law are not cognizable under § 1983. *Clark v. Link*, 855 F.2d 156, 161 (4th Cir. 1988).

the amendment does not confer an absolute individual right to bear any type of firearm. In 1939, the Supreme Court held that the federal statute prohibiting possession of a sawed-off shotgun was constitutional, because the defendant had not shown that his possession of such a gun bore a "reasonable relationship to the preservation or efficiency of a well regulated militia." *United States v. Miller*, 307 U.S. 174, 178 (1939). Since then, the lower federal courts have uniformly held that the Second Amendment preserves a collective, rather than individual, right. This court's precedent is *United States v. Johnson*, 497 F.2d 548 (4th Cir. 1974). In *Johnson*, the defendant challenged the constitutionality of the federal statute prohibiting possession of firearms by convicted felons. We were not impressed (*id.* at 550):

Johnson's argument that [18 U.S.C. §] 922(g) is an unconstitutional violation of his Second Amendment right to keep and bear arms is not new. *See, e.g., United States v. Miller*, 307 U.S. 174, 59 S.Ct. 816 L.Ed. 1206 (1939). The courts have consistently held that the Second Amendment only confers a collective right of keeping and bearing arms which must bear a "reasonable relationship to the preservation or efficiency of a well-regulated militia." 307 U.S. at 178, 59 S.Ct. at 818. Johnson presents no evidence that section 922(g) in any way affects the maintenance of a well regulated militia.

Love has likewise not identified how her possession of a handgun will preserve or insure the effectiveness of the militia.

The judgment is affirmed.

AFFIRMED

LUTTIG, Circuit Judge, concurring in the judgment:

I concur only in the judgment reached by the majority, and I do so only because *Gardner v. Baltimore Mayor and City Council*, 969 F.2d 63 (4th Cir. 1992), is the law of the circuit.

APPENDIX D

UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

[Filed March 2, 1995]

No. 94-1582
CA-93-2609-PJM

APRIL LOVE

Plaintiff-Appellant

v.

ROBERT G. PEPERSACK, SR.; MERRILL A. MESSICK,
JR.; ERNEST ELDON PLETCHER; ELMER HUNT
TIPPETT, JR.; STATE OF MARYLAND

Defendants-Appellees

On Petition for Rehearing with
Suggestion for Reharing In Banc

The appellant's petition for rehearing and suggestion for rehearing in banc were submitted to this Court. As no member of this Court or the panel requested a poll on the suggestion for rehearing in banc, and

As the panel considered the petition for rehearing and is of the opinion that it should be denied,

IT IS ORDERED that the petition for rehearing and suggestion for rehearing in banc are denied.

For the Court,

/s/ Bert M. Montague
CLERK

APPENDIX E

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MARYLAND**

CIVIL ACTION NO. N93-2609

**APRIL LOVE
7600 Fountain Blue Drive
Apt. 602E
New Carrollton, Md. 20784**

Plaintiff

v.

**ROBERT G. PEPERSACK, SR.
301 Luther Road
Glen Burnie, Md. 21601**

**MERRILL A. MESSICK, JR.
1201 Reisterstown Road
Pikesville, Md. 21208**

**ERNEST ELDON PLETCHER
1201 Reisterstown Road
Pikesville, Md. 21208**

**ELMER HUNT TIPPETT, JR.
1201 Reisterstown Road
Pikesville, Md. 21208**

STATE OF MARYLAND

Serve:

**J. Joseph Curran, Jr.
Attorney General
7 N. Calvert Street
Baltimore, Md. 21202**

and

Winfield Kelly, Jr.
 Secretary of State
 Jeffrey Building
 16 Francis Street
 Annapolis, Md. 21404
 Defendants

AMENDED COMPLAINT

JURISDICTION

1. This is an action for money damages to redress the deprivation by the defendants of rights secured to the plaintiff by the Constitution and laws of the United States and the State of Maryland. Jurisdiction of this Court is invoked under the provisions of Sections 1331 and 1343(a)(3) of Title 28 and Sections 1983 and 1988 of Title 42 of the United States Code.

THE PARTIES

2. During all times mentioned in this Complaint, the plaintiff was (and she still is) an adult citizen of the United States residing in the State of Maryland.

3. During all times mentioned in this Complaint, defendant Robert G. Pepersack was the supervisor of the firearms license section of the Maryland State Police, acting in his official capacity. Defendant Pepersack is being sued, however, only in his individual capacity.

4. During all times mentioned in this Complaint, defendant Merrill A. Messick, Jr. was the commander of the licensing division of the Maryland State Police, acting in his official capacity. Defendant Messick is being sued, however, only in his individual capacity.

5. During all times mentioned in this Complaint, defendant Ernest Eldon Pletcher was a corporal in the Maryland State Police assigned to firearms section of the licensing division of the Maryland State Police, acting in his official capacity. Defendant Pletcher is being sued, however, only in his individual capacity.

6. During all times mentioned in this Complaint, defendant Elmer Hunt Tippet, Jr. was the Superintendent of the Maryland State Police, acting in his official capacity. Defendant Tippet is being sue, however, only in his individual capacity.

7. During all times mentioned in this Complaint, the individual defendants named above were acting under color of law, that is, under color of the Constitution, statutes, laws, charter, ordinances, rules, regulations, customs and usages of the defendant State of Maryland.

8. At all times mentioned in this Complaint, the defendants acted jointly and in concert with each other. Each defendant had the duty and the opportunity to protect the plaintiff from the unlawful actions of the other defendants but each defendant failed and refused to perform such duty, thereby proximately causing the plaintiff's injuries.

COUNT I

9. The plaintiff realleges and incorporates herein by reference the averments contained in Paragraphs 1 through 8, *supra* as if they were fully set forth herein.

10. In September of 1990 the plaintiff sought to purchase a firearm from the retail outlet in Prince George's County, Maryland. On September 13, 1990 she completed an Application To Purchase A Firearm (Maryland State Police Form #77R) pursuant to Article 27, Section

442 of the Annotated Code of Maryland. The plaintiff provided all information required by this form and all information provided by her was true and correct.

11. The plaintiff's application was forwarded to the Maryland State Police and received by the licensing division on September 18, 1990. Commencing on September 21, 1990 the defendant Pletcher commenced an investigation of the plaintiff's application pursuant to Article 27, Section 442(f) of the Annotated Code of Maryland. This investigation was completed by the defendant Pletcher on September 21, 1990.

12. Defendant Pletcher's investigation of the plaintiff's application consisted of a review of computer printouts from data bases maintained by the Maryland State Police and the Federal Bureau of Investigation (F.B.I.).

13. As a result of his investigation pursuant to Article 27, Section 442(f) of the Annotated Code of Maryland the defendant Pletcher determined that there was no problem with the completion of the plaintiff's Application To Purchase A Firearm. Defendant Pletcher's investigation of the plaintiff's application also failed to reveal any facts that would have lawfully prohibited the plaintiff from purchasing or possessing a handgun. Specifically, defendant Pletcher's investigation failed to reveal that the plaintiff had ever been convicted of a "crime of violence" in Maryland or elsewhere; that the plaintiff had ever been convicted of a violation of Article 27, Section 286, 286(a), or 286(c) of the Annotated Code of Maryland; that the plaintiff had ever been convicted of conspiracy to commit any crimes established by Article 27, Sections 286, 286(a) or 286(c) of the Annotated Code of Maryland; that the plaintiff had ever been convicted of any violation of the subtitle governing

pistols set forth in Article 27, Sections 441 through 448 of the Annotated Code of Maryland; that the plaintiff was a fugitive from justice; that the plaintiff was an habitual drunkard; was an addict or an habitual user of narcotics, barbiturates or amphetamines; that the plaintiff had ever spent more than thirty consecutive days in any medical institution for treatment or a mental disorder or disorders; or that the plaintiff was under 21 years of age.

14. Despite the fact that his investigation revealed nothing that would have prevented the plaintiff from purchasing or possessing a handgun, defendant Pletcher nonetheless recommended to the defendant Pepersack that the plaintiff's application be disapproved.

15. Defendant Pletcher recommended that the plaintiff's application be disapproved based upon three prior arrests of the plaintiff in the State of Florida in 1976 and one prior arrest in the State of Illinois in 1978. This recommendation was made by defendant Pletcher without first determining whether or not any of these arrests had actually resulted in a conviction, although defendant Pletcher, a State Trooper with 18 years experience, clearly understood that there was a significant difference between an individual's being arrested and that person's being convicted of an offense.

16. After receiving defendant Pletcher's recommendation that the plaintiff's application be disapproved, defendant Pepersack personally reviewed the computer printouts that defendant Pletcher had reviewed in conducting his investigation and upon which he based his recommendation of disapproval. Defendant Pepersack did not conduct any additional investigation of the plaintiff's application beyond reviewing the computer printouts.

17. Defendant Pepersack made the final decision to disapprove the application based upon three prior arrests of the plaintiff in the State of Florida in 1976 and one prior arrest in the State of Illinois in 1978. This decision was made by defendant Pepersack without first determining whether or not any of these arrests had actually resulted in a conviction, although defendant Pepersack, a State Trooper with 26 years experience, clearly understood that there was a significant difference between an individual's being arrested and that person's being convicted of an offense.

18. Based upon his review of the information supplied to him by the defendant Pletcher, defendant Pepersack failed to determine that the plaintiff would have been lawfully prohibited from purchasing or possessing a handgun. Specifically, defendant Pepersack failed to determine that the plaintiff had ever been convicted of a "crime of violence" in Maryland or elsewhere; that the plaintiff had ever been convicted of a violation of Article 27, Section 286, 286(a), or 286(c) of the Annotated Code of Maryland; that the plaintiff had ever been convicted of conspiracy to commit any crimes established by Article 27, Sections 286, 286(a) or 286(c) of the Annotated Code of Maryland; that the plaintiff had ever been convicted of any violation of the subtitle governing pistols set forth in Article 27, Sections 441 through 448 of the Annotated Code of Maryland; that the plaintiff was a fugitive from justice; that the plaintiff was an habitual drunkard; was an addict or an habitual user of narcotics, barbiturates or amphetamines; that the plaintiff had ever spent more than thirty consecutive days in any medical institution for treatment or a mental disorder or disorders; or that the plaintiff was under 21 years of age.

19. Subsequent to defendant Pepersack's decision to disapprove the plaintiff's application, defendant Merrill A. Messick, Jr. informed the plaintiff by letter dated September 21, 1990 that "[a]n investigation into your application to purchase a pistol or revolver has indicated that it should not be approved. Accordingly, the seller has been notified that the transfer of a pistol or revolver will not be completed at this time." As of September 21, 1990 defendant Messick was the Commander of the licensing division of the Maryland State Police and, as commander, was responsible for notices of disapproval that go out to sellers or transferors of handguns.

20. Defendant Messick's notification to the plaintiff that "[a]n investigation into your application to purchase a pistol or revolver has indicated that it should not be approved," and his notification of the seller not to complete the transfer of a handgun to the plaintiff was undertaken without his having any basis to believe that the plaintiff would have been lawfully prohibited from purchasing or possessing a handgun. Specifically, defendant Messick had no information to indicate that the plaintiff had ever been convicted of a "crime of violence" in Maryland or elsewhere; that the plaintiff had ever been convicted of a violation of Article 27, Section 286, 286(a), or 286(c) of the Annotated Code of Maryland; that the plaintiff had ever been convicted of conspiracy to commit any crimes established by Article 27, Sections 286, 286(a) or 286(c) of the Annotated Code of Maryland; that the plaintiff had ever been convicted of any violation of the subtitle governing pistols set forth in Article 27, Sections 441 through 448 of the Annotated Code of Maryland; that the plaintiff was a fugitive from justice; that the plaintiff was an habitual drunkard; was an addict or an habitual user of narcotics,

barbiturates or amphetamines; that the plaintiff had ever spent more than thirty consecutive days in a medical institution for treatment of a mental disorder or disorders; or that the plaintiff was under 21 years of age.

21. Defendant Messick so notified the plaintiff and the seller of the handgun although, as a State Trooper with more than thirty years' experience, he clearly understood that there was a significant difference between an individual's being arrested and that person's being convicted of an offense.

22. With the knowledge, consent, and under the supervision of the defendant Messick, the defendants Pletcher and Pepersack, as personnel of the licensing division of the Maryland State Police, conducted the actual investigations of applications to purchase firearms such as that completed by the plaintiff.

23. With the knowledge, consent, and under the supervision of the defendant Messick, the defendants Pletcher and Pepersack routinely disapproved applications to purchase firearms solely on the basis of prior arrests that, had they resulted in a conviction, would possibly disqualify an applicant from purchasing a handgun under state or federal law.

24. Defendant Messick had been the commander of the licensing division of the Maryland State Police since July of 1988, and, as of September, 1990, had actual knowledge of the procedures followed by the licensing division of the Maryland State Police in the processing of applications to purchase firearms. Defendant Messick knew, or should have known, that his subordinates were acting unlawfully and in violation of the constitutional rights of persons, including the plaintiff, whose applications were thus disapproved. But the defendant Messick

failed to take any action to prevent such unlawful and unconstitutional conduct on the part of his subordinates.

25. Defendant Messick, along with defendants Pletcher and Pepersack were, as of September of 1990, expressly authorized by the Superintendent of the Maryland State Police to act as his agent in matters relating to the investigations required by Article 27, Section 442 of the Annotated code of Maryland.

26. Defendant Messick, along with defendants Pletcher and Pepersack were, as of September of 1990, routinely disapproving applications to purchase firearms such as that completed by the plaintiff solely on the basis of prior arrests without bothering to determine whether an arrest had actually resulted in a conviction.

27. As of September of 1990, the Maryland State Police had no statutory authority to disapprove an application to purchase a firearm on the basis of prior arrests without determining whether or not the arrest actually resulted in a conviction.

28. However, as of September, 1990, the licensing division of the Maryland State Police maintained and followed a policy, practice, and custom of disapproving applications to purchase firearms solely on the basis of prior arrests that, had they resulted in a conviction, would possibly disqualify an applicant from purchasing a handgun under state or federal law. Pursuant to this policy, practice, custom, the licensing division of the Maryland State Police would notify an applicant and the seller that the application was disapproved and, if an appeal hearing was requested by an applicant, would notify the applicant of the arrest upon which the disapproval was based and require the applicant to obtain proof that the arrest had resulted in something other

than a conviction, or in the event of a conviction to provide proof that the offense would not disqualify the applicant from purchasing a handgun. At an appeal hearing conducted at the Maryland State Police Headquarters on November 8, 1990 with regard to the plaintiff's application, defendant Pepersack testified under oath that he had been the supervisor of the firearms license section for five years and that this had been the policy, practice, and custom since he came to the licensing division.

29. At the plaintiff's appeal hearing held on November 8, 1990, the defendant Pletcher testified under oath that he had been with the licensing division of the Maryland State Police since June 27, 1990. Defendant Pletcher testified under oath that it was his understanding that it is standard operating procedure of the licensing division of the Maryland State Police to disapprove an application to purchase a firearm where there is a record of an arrest for what was perceived to be a serious crime, but where there had been no finding as to a conviction if the crime would prohibit someone from purchasing or possessing a firearm under state or federal law. Defendant Pletcher also testified that this procedure was communicated to him by the defendant Pepersack through his training process.

30. At the plaintiff's appeal hearing held on November 8, 1990, the defendant Pepersack testified under oath that since he came to the firearms license section in 1986 it had been the policy to disapprove applications to purchase firearms where there is a record of an arrest for what was perceived to be a serious crime and to require a prospective purchaser to provide documentation as to the final disposition of the arrest and, in the event of a conviction, to document that the conviction would not

disqualify him or her from purchasing a pistol or revolver. The defendant Pepersack also testified that "hundreds of thousands" of individuals had been initially disapproved according to this policy.

31. As of September, 1990, the policy, practice, and custom of disapproving applications to purchase firearms solely on the basis of prior arrests was contrary to the provisions of Article 27, Section 442 of the Annotated Code of Maryland which govern the sale or transfer of pistols or revolvers. That section of the Annotated Code of Maryland placed upon the Superintendent of State Police the obligation of conducting an investigation in order to determine the truth or falsity of the information supplied and statements made in an application to purchase a firearm; and authorized disapproval of an application only where the Superintendent of State Police determined that any false information or statement had been supplied or made by the applicant, or that the application had not been properly completed.

32. With the knowledge and consent of the defendant Tippettt the defendants Messick, Pletcher and Pepersack, as personnel of the licensing division of the Maryland State Police, conducted investigations of applications to purchase firearms such as that completed by the plaintiff.

33. Defendant Tippettt had been Superintendent of the Maryland State Police since November of 1987 and, as of September, 1990, had actual knowledge of the procedures followed by the licensing division of the Maryland State Police in the processing of applications to purchase firearms. Defendant Tippettt knew, or should have known, that his subordinates were acting unlawfully and in violation of the constitutional rights of persons, including the plaintiff, whose applications were thus disapproved. But the defendant Tippettt failed to take

any action to prevent such unlawful and unconstitutional conduct on the part of his subordinates.

34. With the knowledge and consent of the defendant Tippet, the defendants Messick, Pletcher and Pepersack routinely disapproved applications to purchase firearms solely on the basis of prior arrests that, had they resulted in a conviction, would possibly disqualify an applicant from purchasing a handgun under state or federal law.

35. As direct and proximate result of the acts and omissions of the individual defendants as aforesaid, the plaintiff was denied the ability to purchase a handgun. The plaintiff, a layperson, was compelled to obtain the services of legal counsel to represent her in an appeals process which culminated in an order entered in her favor against the defendants Tippet and Messick by the Circuit Court for Prince George's County, Maryland whereby the defendant Tippet was ordered to "forthwith approve the [plaintiff's] Application To Purchase A Firearm (MSP Form #77R)."

36. In the manner described above, the individual defendants, in furtherance of a policy, practice, and custom of the defendant, State of Maryland, acted willfully and maliciously.

37. In the manner described above, the individual defendants, in furtherance of a policy, practice, and custom of the defendant, State of Maryland, acted with a reckless disregard of the constitutional rights of the plaintiff although they knew, or reasonably should have known, that their conduct would result in the violation of the plaintiff's constitutional rights.

38. In the manner described above, the individual defendants, in furtherance of a policy, practice, and custom of the defendant, State of Maryland, deprived

the plaintiff of her right to keep and bear arms, freedom to contract, and to due process of law. All of these rights are secured individually to the plaintiff by the provisions of the Second and Fourteenth Amendments to the United States Constitution, Article 2 of the Maryland Declaration of Rights, and by Title 42 U.S.C. Sections 1983 and 1988.

COUNT II

39. The plaintiff realleges and incorporates herein by reference the averments contained in paragraphs 1 through 38, *supra*, as of they were fully set forth herein.

40. In the manner described herein, all the defendants deprived the plaintiff of her right to be free from being taken or imprisoned or disseized of her liberties or privileges, or in any manner deprived of life, liberty or property but by the judgment of her peers, or by the Law of the Land, contrary to rights conferred upon or guaranteed individually to her pursuant to Article 24 of the Maryland Declaration of Rights.

WHEREFORE, the plaintiff demands judgment as follows:

A. Compensatory damages against the defendants, jointly and severally.

B. Punitive damages against the defendants, jointly and severally.

C. The costs incurred by the plaintiff in bringing this action.

D. Plaintiff's reasonable attorney's fees.

E. Such other relief as this Court shall deem fair and equitable.

HOWARD J. FEZELL (Fed. Bar #08799)
203A Broadway Street
P.O. Box 588
Frederick, Maryland 21705-0588
(301) 856-0241
Counsel For Plaintiff

DEMAND FOR JURY TRIAL

The Plaintiff demands a trial by jury.

/s/ Howard J. Fezell

CERTIFICATE OF SERVICE

I hereby certify that on the 15th day of September, 1993 a copy of the foregoing Amended Complaint was mailed, via first class mail, postage prepaid, along with the original Complaint, summons, and two copies of the Notice and Acknowledgement Of Receipt Of Summons And Complaint to the following:

ROBERT G. PEPERSACK, SR.
301 Luther Road
Glen Burnie, Md. 21601

MERRILL A. MESSICK, JR.
Headquarters, Maryland State Police
1201 Reisterstown Road
Pikesville, Md. 21208

ERNEST ELDON PLETCHER
Headquarters, Maryland State Police
1201 Reisterstown Road
Pikesville, Md. 21208

ELMER HUNT TIPPETT, JR.
Headquarters, Maryland State Police

1201 Reisterstown Road
Pikesville, Md. 21208

And on behalf of the Defendant, State of Maryland:

J. Joseph Curran, Jr.
Attorney General
7 N. Calvert Street
Baltimore, Md. 21202

Winfield Kelly, Jr.
Secretary of State
Jeffrey Building
16 Francis Street
Annapolis, Md. 21204

/s/ Howard J. Fezell



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No. 94-1947

Supreme Court, U.S.
FILED
AUG 25 1995

In the

CLERK

Supreme Court of the United States

October Term, 1995

APRIL LOVE,

Petitioner,

v.

ROBERT G. PEPERSACK, SR., et al.,

Respondents.

**On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Fourth Circuit**

**BRIEF IN OPPOSITION TO
PETITION FOR A WRIT OF CERTIORARI**

J. JOSEPH CURRAN, JR.
Attorney General of Maryland

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Assistant Attorney General
200 St. Paul Place
Baltimore, Maryland 21202
(410) 576-6330

**Counsel of Record*

Attorneys for Respondents

August 28, 1995

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COUNTERSTATEMENT OF QUESTIONS PRESENTED FOR REVIEW

1. Whether a decision by state officials, overturned on appeal by a state court, to disapprove an application for a firearm license in violation of state law states a substantive due process claim?

2. Whether the Second Amendment applies to the states and protects a personal, rather than a collective right; and if it does, is it violated by a decision of state officials, overturned on appeal by a state court, to disapprove an application for a firearm license in violation of state law?

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No. 94-1947

In the
Supreme Court of the United States

October Term, 1995

APRIL LOVE,

Petitioner,

v.

ROBERT G. PEPERSACK, SR., *et al.*,

Respondents.

**On Petition For A Writ Of Certiorari
To The United States Court Of Appeals
For The Fourth Circuit**

**BRIEF IN OPPOSITION TO
PETITION FOR A WRIT OF CERTIORARI**

COUNTERSTATEMENT OF THE CASE

1. Proceedings below.

Petitioner April Love asks this Court to review the decision of the court of appeals affirming the district court's dismissal of her claim for money damages on the basis that neither substantive due process principles nor the Second Amendment is violated by a decision of state officials, overturned on appeal by a state court, to disapprove an application for a firearm license in violation of state law.

Pursuant to subsection (g) of MD. ANN. CODE art. 27 § 442 (Supp. 1994) (App. 3a-8a), which sets out the procedures to be followed before a dealer may sell a

firearm, Ms. Love filled out an application which the firearm dealer forwarded to the Superintendent of the Maryland State Police (MSP). (App. 37a.) Upon receipt of the application the MSP was required to conduct an investigation to determine the truth of the information supplied by Ms. Love (App. 5a-6a), and to complete the investigation and give written notice of any disapproval to her "within seven days from the date the executed application to purchase or transfer was forwarded by certified mail [to the MSP by the prospective seller]."¹ (App. 6a) The investigation of Ms. Love's application consisted of a review of computer printouts from data bases maintained by MSP and the Federal Bureau of Investigation, and revealed that Ms. Love had been arrested for three offenses that had there been a conviction, would have disqualified her from purchasing a firearm under state and federal law. (App. 37a, 38a, 42a-43a.) Based on a review of the file, respondent Pepersack disapproved Ms. Love's application. (App. 27a.) After she was notified of the disapproval, petitioner exhausted her administrative remedies (App. 27a), and then appealed to the Circuit Court for Prince George's County, Maryland, which reversed the decision of the MSP. (App. 45a.)

A year and a half later Ms. Love filed a complaint in the United States District Court for the District of Maryland for money damages alleging that the decision of the Maryland State Police that was overturned on appeal by the state court violated her rights under substantive due process principles and the Second Amendment. Respondents filed a motion to dismiss, arguing that the misapplication of state law that had been corrected by a state court did not rise to the level of a substantive due process violation and, citing *United States v. Cruikshank*,

¹ "The date upon which the executed application to purchase or transfer was forwarded by certified mail by the prospective seller or transferor shall be considered the first day of the seven-day period allowed for notice of disapproval to the said prospective seller or transferor." (App. 6a.)

92 U.S. 542, 553 (1876), argued that the Second Amendment does not apply to the states.²

2. Decisions below.

The district court, after noting that it was a "proposition [that] has not ever been accepted by courts in this country," (App. 14a), relied on *Presser v. Illinois*, 116 U.S. 252 (1886), and *United States v. Cruikshank*, to reject petitioner's argument that the Second Amendment applies to the states. (App. 14a) The district court also held that petitioner had not stated a claim for violation of substantive due process because petitioner had not demonstrated any entitlement to have her application approved since the MSP had some discretion concerning whether to disapprove the application. (App. 19a.) Furthermore, the district court held that even if there was a protected interest, the actions of the respondents were not "arbitrary and capricious in the sense that 42 U.S.C. [§] 1983 defines them." (App. 19a-20a.)

Assuming without deciding that Love had a claim of entitlement in the approval of her application for a firearm, the court of appeals held that there had not been a violation of substantive due process because the facts alleged did not show that the actions of the state officials were "so arbitrary or irrational, so unjustified by any circumstance or governmental interest, as to be literally incapable of avoidance by any pre-deprivation procedural protections or

² In addition, the respondents argued that suit against the State of Maryland was barred by the Eleventh Amendment and that the complaint did not state a claim upon which relief could be granted for any interference with Ms. Love's freedom to contract or a violation of the Maryland Declaration of Rights. The district court ruled in respondents' favor on these issues. Ms. Love did not appeal the dismissal of the State and has now abandoned any claim based on the contract clause or the Maryland Declaration of Rights.

of adequate rectification by any post-deprivation state remedies." (App. 29a) *quoting Rucker v. Harford County*, 946 F.2d 278, 281 (4th Cir. 1991), *cert. denied*, 502 U.S. 1097 (1992).³ "Indeed, the deprivation here was fully rectified." (App. 30a.)

Applying this Court's holdings in *Presser v. Illinois*, *United States v. Cruikshank*, and *United States v. Miller*, 307 U.S. 174 (1939), the court of appeals held that petitioner had not stated a claim for a violation of the Second Amendment, because the Second Amendment does not apply to the states, and in any event it protects a "collective, rather than individual, right." (App. 30a-31a.) *also relying on United States v. Johnson*, 497 F.2d 548 (4th Cir. 1974). The court of appeals affirmed and denied petitioner's request for rehearing and suggestion of rehearing *en banc*.

REASONS FOR DENYING THE WRIT

Further review of this case is unwarranted because the questions that the petition presents are settled and petitioner has not pointed to any conflict with any decision of this Court or any other court. First, the court of appeals decided no novel or unresolved questions of federal law in concluding that a violation of substantive due process did not occur simply because state officials enforced a policy that was contrary to state law until it was successfully challenged in state court.

³ The court of appeals' conclusion that the MSP was "strapped for time" flows from the facts in the complaint. Ms. Love filled out her application on September 13th, it was received by the MSP on September 18th, and she had to be given written notification by September 21st. (App. 36a-37a.) Thus, petitioner is wrong in asserting that the court of appeals "stated as fact something that is not apparent from the record." Pet. at 24.

Second, review is unwarranted because the court below followed well established precedent of this Court in finding that "the Second Amendment does not apply to the states" and that it in any event "preserves a collective, rather than an individual right." (App. 30a-31a.) Petitioner does not cite any conflicting decisions of this Court or any other court on this issue. Moreover, even if the Second Amendment applies to the states and preserves an individual right, it is not an absolute right -- the states would still have the right to regulate and misapplication of a state law regulating the sale of firearms would not amount to a denial of any Second Amendment right, especially when the erroneous denial is corrected on appeal by a state court. In any event, qualified immunity would bar any recovery to the petitioner because not only does she not seek declaratory or injunctive relief, she does not allege any facts -- such as that the MSP continued to misapply Maryland law after the state court's decision finding the policy in violation of state law -- that would support a claim for declaratory or injunctive relief. In sum, this case is not an appropriate vehicle to reconsider the well settled law on the Second Amendment, because the factual situation here does not go "beyond the academic or the episodic," *Rice v. Sioux City Memorial Park Cemetery*, 349 U.S. 70, 74 (1955).

The petition should be denied, therefore, because this case presents no issue warranting this Court's review.

I. THE COURT OF APPEALS HOLDING THAT SUBSTANTIVE DUE PROCESS WAS NOT VIOLATED DOES NOT PRESENT A SUBSTANTIAL QUESTION AND IS CONSISTENT WITH THE DECISIONS OF THIS COURT AND OTHER CIRCUIT COURTS.

Without citing to any cases that hold that different standards apply to intentional and unintentional violations of state law, petitioner argues that the court of appeals incorrectly applied a standard that only applies to unintentional acts when it held that the disapproval of her

application did not violate substantive due process. Pet. at 23-24. However, an examination of the court of appeals decision reveals that the court did not disregard or misapply any precedents of this Court in deciding that even assuming that petitioner has a "property interest in the approval of her application" (App. 29a), the governmental action here did not rise to the level required to amount to a violation of substantive due process.

As the court of appeals recognized, the respondents' violation of state law arose out of an exercise of "extreme caution by denying applications where a computer check showed arrests with unknown dispositions" (App. 29a-30a), for offenses which, had there been a conviction, would have disqualified the applicant from purchasing the firearm under state or federal law. (App. 42a-43a.) The court of appeals' conclusion that it would "trivialize the Due Process Clause" to conclude that substantive due process is violated when it could not say that the action taken by the state officials "was 'unjustified by circumstance or governmental interest' or that its effect was 'literally incapable of . . . adequate rectification by any post-deprivation state remedies'" (App. 30a), is consistent with this Court's precedent that "the Due Process Clause of the Fourteenth Amendment was intended to prevent government 'from abusing [its] power, or employing it as an instrument of oppression.'" *Davidson v. Cannon*, 474 U.S. 344, 348 (1986), *quoted in DeShaney v. Winnebago County DSS*, 489 U.S. 189, 196 (1989). *See also Bowers v. Hardwick*, 478 U.S. 186, 195 (1986); *Paul v. Davis*, 424 U.S. 693, 700 (1976). The Due Process Clause does not protect against all wrongful governmental action. *See, e.g., Foucha v. Louisiana*, 504 U.S. 71, 72 (1992) ("the Due Process Clause contains a substantive component that bars *certain* arbitrary, wrongful government action...." (emphasis added)). The facts alleged in the complaint simply do not rise to an instance where there was an "affirmative abuse of power," *Parratt v. Taylor*, 451 U.S. 527, 549 (1981) (Powell, J., concurring in result), or where "governmental power [was] being 'used for purposes of oppression.'" *Daniels v. Williams*, 474 U.S. 327, 331

(1986) (internal citations omitted). *See also Sandin v. Conner*, 115 S. Ct. 2293 (1995) (state prison regulation does not create a liberty interest protected by the due process clause merely because it mandates a particular procedure).

In addition to not showing any conflict or inconsistency with any holding of this Court, petitioner does not point to any conflict between the decision below and any other court of appeals. To the contrary, the analysis of the Court of Appeals for the Fourth Circuit is consistent with the law in other circuits. *See, e.g., Harrill v. Blount County, Tennessee*, 55 F.3d 1123, 1125 (6th Cir. 1995) ("The violation of a right created and recognized only under state law is not actionable under §1983."); *Lowrance v. Achryl*, 20 F.3d 529, 537 (2nd Cir. 1994) ("Substantive due process protects individuals against government action that is arbitrary, conscience-shocking, or oppressive in a constitutional sense, but not against government action that is 'incorrect or ill-advised.'" (citations omitted)); *Burgess v. Ryan*, 996 F.2d 180, 184 (7th Cir. 1993) ("The Constitution does not require states to administer their laws correctly. Blunders in the implementation of state law are inevitable; state courts provide the remedy." (citations omitted)), *cert. denied*, 114 S. Ct. 923 (1994); *Coyne v. City of Somerville*, 972 F.2d 440, 444 (1st Cir. 1992) ("violations of state law - even where arbitrary, capricious, or undertaken in bad faith - do not, without more, give rise to a denial of substantive due process"); *Chesterfield Development Corp. v. City of Chesterfield*, 963 F.2d 1102, 1105 (8th Cir. 1992) ("A bad-faith violation of state law remains only a violation of state law."); *Phillips v. Calhoun*, 956 F.2d 949, 954 (10th Cir. 1992) ("noncompliance with local law does not constitute a violation of federal due process rights" (citations omitted)); *Midnight Sessions, Ltd. v. City of Philadelphia*, 945 F.2d 667, 684 (3rd Cir. 1991) ("a violation of state law does not constitute a denial of substantive due process"), *cert. denied*, 503 U.S. 984 (1992); *Smith v. City of Picayune*, 795 F.2d 482, 488 (5th Cir. 1986) (violation of state law not *per se* violation of due process, must also

prove irrational and arbitrary conduct); *Jones v. Phyfer*, 761 F.2d 642, 647 (11th Cir. 1985) ("The fact that defendants may have violated . . . state law . . . does not mean that the defendants deprived plaintiff of her liberty without due process of law."); *Cooks v. Spalding*, 660 F.2d 738, 739 (9th Cir. 1981) ("Violations of state law, without more, do not deprive defendant of due process."), *cert. denied* 455 U.S. 1026 (1982).

II. THE COURT OF APPEALS APPLIED WELL SETTLED LAW ON THE SECOND AMENDMENT AND THIS PETITION DOES NOT PRESENT ANY BASIS FOR THIS COURT TO REEXAMINE THAT LAW.

The court of appeals holding that "the Second Amendment does not apply to the states" and that it "preserves a collective, rather than an individual right" (App. 30a-31a), follows this Court's holdings in *Presser v. Illinois*, 116 U.S. 252; *United States v. Cruikshank*, 92 U.S. 542; and *United States v. Miller*, 307 U.S. at 178.⁴ In fact, as the district court held, the contrary proposition put forward by petitioner "has not ever been accepted by courts in this country." (App. 14a.) Thus petitioner does not cite any holdings of this Court or any other court in support of his proposition that the Second Amendment applies to the states. Instead, she relies exclusively on "law review articles." (App. 30a.) Similarly, petitioner

⁴ See also *Lewis v. United States*, 445 U.S. 55, 65 n. 8 (1980), where this Court noted that "legislative restrictions on the use of firearms [were] neither based upon constitutionally suspect criteria, nor . . . trench upon any constitutionally protected liberties." (Citing *United States v. Miller*, *United States v. Three Winchester 30-30 Caliber Lever Action Carbines*, 504 F.2d 1288, 1290 n. 5 (7th Cir. 1974); *United States v. Johnson*, 497 F.2d 548 (4th Cir. 1974); *Cody v. United States*, 460 F.2d 34 (8th Cir.), *cert. denied*, 409 U.S. 1010 (1972)).

does not point to one case that has held that the Second Amendment guarantees a personal right. Instead, in addition to law review articles, she relies on inapplicable dicta in *Planned Parenthood v. Casey*, 112 S. Ct. 2791 (1992); *United States v. Verdugo-Urquidez*, 494 U.S. 259 (1990); and *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393 (1857).⁵

This Court has consistently refused to grant certiorari in cases in which the question of whether the Second Amendment applies to the states through the Fourteenth Amendment has been squarely presented. See, e.g., *Quilici v. Village of Morton Grove*, 695 F.2d 261 (7th Cir. 1982), cert. denied, 464 U.S. 863 (1983); *Masters v. State*, 685 S.W.2d 654 (Tex. Cr. App), cert. denied sub nom. *Masters v. Texas*, 474 U.S. 853 (1985); *State v. Cartwright*, 418 P.2d 822 (Or. 1966), cert. denied sub nom. *Cartwright v. Oregon*, 386 U.S. 937 (1967). Likewise, this Court has repeatedly denied petitions for certiorari asking this Court to revisit the issue of whether the Second Amendment confers an individual rather than a collective right. See, e.g., *United States v. Hale*, 978 F.2d 1016 (8th Cir. 1992), cert. denied, 113 S. Ct. 1614 (1993); *Quilici v. Village of Morton Grove*, 695 F.2d 261 (7th Cir. 1982), cert. denied, 464 U.S. 863 (1983); *United States v.*

⁵ Petitioner disingenuously argues that the court of appeals' holding that the Second Amendment protects a collective right, rather than an individual right, is in conflict with *Fresno Rifle and Pistol Club v. Van de Kamp*, 965 F.2d 723 (9th Cir. 1992). Pet. at 16. On the contrary, the Court of Appeals for the Ninth Circuit held that the Second Amendment does not apply to the states and did not even address the question of whether the right is an individual or collective right. While petitioner claims that the court of appeals "affirmed the holding of the district court that the Second Amendment guarantees an individual right," Pet. at 17, the district court's decision, 746 F. Supp. 1415 (E.D. Cal. 1990), which petitioner does not even cite, is silent on that issue.

Oakes, 564 F.2d 384 (10th Cir. 1977), *cert. denied*, 435 U.S. 926 (1978); *United States v. Warin*, 530 F.2d 103 (6th Cir.), *cert. denied*, 426 U.S. 948 (1976); *Eckert v. City of Philadelphia*, 477 F.2d 610 (3d Cir. 1973), *cert. denied*, 414 U.S. 839 (1973).

At most, the question presented by petitioner concerning the Second Amendment is "intellectually interesting," *Rice v. Sioux City Memorial Park Cemetery, Inc.*, 349 U.S. at 74, because, even if the Second Amendment applies to the states and confers an individual right, the right is not absolute. *See, e.g., Lewis v. United States*, 445 U.S. 55 (1980) (upholding the regulation of the possession of firearms by felons); *United States v. Miller*, 307 U.S. 174 (upholding regulations restricting possession of particular firearms); *cf. Nebraska Press Assoc. v. Stuart*, 427 U.S. 539 (1976) ("This Court has frequently denied that First Amendment rights are absolute...."). The states have some ability to regulate the right and it would not be violated merely because state officials violate state law, especially when that violation is corrected on appeal, by a state court.

Finally, even if the Court accepts petitioner's arguments, petitioner will eventually lose this case, as respondents are state officials who are immune from claims for money damages unless "in the light of pre-existing law, the unlawfulness [is] apparent." *Anderson v. Creighton*, 483 U.S. 635, 640 (1987) (citations omitted). At the time the state officials disapproved the petitioner's application, it was certainly not "apparent" that the Second Amendment applies to the states and protects a personal, rather than a collective right. These state officials were not required "to anticipate subsequent legal developments, [or] . . . to 'know' that the law forbade conduct not previously identified as unlawful." *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982). The fact that they violated state law is not determinative if "the constitutional right . . . alleged to have [been] violated," was not clearly established. *Davis*

v. Scherer, 468 U.S. 183, 194 (1984). Thus on remand they would assert qualified immunity.⁶

Because petitioner does not seek injunctive relief, or even allege facts that would support injunctive relief, any reconsideration of the well settled law on the Second Amendment through this case will answer an "academic" question, *Rice v. Sioux City Memorial Park Cemetery*, 349 U.S. at 74, since there is no allegation that the MSP continued to misapply state law after the state court decision that settled the matter with respect to petitioner. As in *Rice*, the state has taken action that "reach[es] precisely the same situations that would [be] covered by a decision in this Court sustaining the petitioner claim on the merits." *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409, 417 n. 21 (1968). There are no "special or important reasons," S. Ct. Rule 10.1, for granting certiorari in this case.

'Special and important reasons' imply a reach to a problem beyond the academic or the episodic. This is especially true where the issues involved reach constitutional dimensions, for then there comes into play regard for the Court's duty to avoid decision of constitutional issues unless avoidance becomes evasion.

Rice v. Sioux City Memorial Park Cemetery, 349 U.S. at 74. Avoidance in this instance is simply refusing to revisit a settled constitutional question to "pass judgment on [Maryland] for unconstitutional action, were such to be

⁶ The issue of qualified immunity was not raised in the motion to dismiss. However, if this Court were to hold that the complaint states a claim upon which relief can be granted, respondents would allege qualified immunity in their answer. See *Harlow v. Fitzgerald*, 457 U.S. 800, 815 (1982) (qualified immunity must be plead); Fed. Rule Civ. Proc. Rule 7(a) (listing an answer as one of the pleadings allowed).

found, when it has already rectified any possible error." *Id.* at 77. In sum, this case is an "inappropriate vehicle for [reexamining]" the Second Amendment. *New York v. Uplinger*, 467 U.S. 246, 249, (1984). Any reexamination "can await a day when the issue is posed less abstractly." *The Monrosa v. Carbon Black Export, Inc.*, 359 U.S. 180, 184 (1959).

CONCLUSION

For the reasons stated, the petition should be denied.

Respectfully submitted,

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